



Republic of the Philippines
SENATE
Pasay City

JOURNAL

SENATE SITTING AS AN
IMPEACHMENT COURT
ON THE IMPEACHMENT TRIAL OF
VICE-PRESIDENT
SARA ZIMMERMAN DUTERTE

IMPEACHMENT TRIAL NO. 10
WEDNESDAY, 22 JULY 2026

PREPARED BY THE
LEGISLATIVE JOURNAL SERVICE
SENATE OF THE PHILIPPINES

IMPEACHMENT TRIAL NO. 10

Wednesday, July 22, 2026

PROCLAMATION OF THE SERGEANT-AT-ARMS

The Sergeant-at Arms, PMGen Alfred S. Corpus, commanded all persons, on pain of penalty to keep silent while the Senate is sitting for the trial of the Articles of Impeachment against Vice President Sara Zimmerman Duterte.

CALL TO ORDER

At 2:00 p.m., Wednesday, July 22, 2026, the Senate President, Win Gatchalian, with the Senate sitting as an Impeachment Court, called the impeachment trial of Vice President Sara Zimmerman Duterte to order.

PRAYER

The Court observed a minute of silent prayer.

ROLL CALL

Upon direction of the Senate President, the Clerk of Court, Atty. Renato N. Bantug Jr., called the roll, to which the following senator-judges responded:

Aquino, B.	Pangilinan, F.N.
Ejercito, J.V.	Sotto III, V. C.
Escudero, F. G.	Tulfo, E. T.
Gatchalian, W. T.	Tulfo, R. T.
Hontiveros, R.	Villanueva, J.
Lacson, P. M.	Villar, C. A.
Lapid, M. M.	Villar, M. A.
Legarda, L.	Zubiri, J. M. F.
Marcos, I. R.	

With 17 senators present, the Chair declared the presence of a quorum.

Senator-Judges Cayetano (A), Cayetano (P), Go and Padilla were also present.

Senator-Judges Estrada and Marcoleta were under detention and unable to attend.

Senator-Judge Dela Rosa was absent.



In accordance with the *Rules of Procedure on Impeachment Trials*, Senate President Gatchalian recognized the duly-elected Presiding Officer, Senator-Judge Francis "Chiz" G. Escudero, to preside over the proceedings of the Impeachment Court.

CALLING OF THE CASE

Upon direction of the Presiding Officer, the Clerk of Court called Case No. 004-2026, titled "*In the Matter of the Impeachment Trial of Vice President Sara Zimmerman Duterte.*"

APPEARANCES

The Presiding Officer, Senator-Judge Francis G. Escudero directed the parties to enter their appearances.

Representative Gerville Luistro entered the appearances previously entered, on behalf of the Prosecution.

Atty. Mark Vinluan entered the same appearances on behalf of the Respondent.

PRESENTATION OF WITNESS

The Presiding Officer called on Atty. Melvin Matibag, Director of the National Bureau of Investigation (NBI), to the witness stand for the cross-examination.

CROSS-EXAMINATION BY THE COUNSEL FOR THE RESPONDENT

(Continuation)

Atty. Vinluan conducted the cross-examination of the witness, to wit:

Mr. Vinluan. Good afternoon again, Director Matibag.

Mr. Matibag. Good afternoon, sir.

Mr. Vinluan. Director Matibag, in relation to Article IV of these Articles of Impeachment, you were likewise subpoenaed by the House Committee on Justice to attend its mini-trial, correct?

Mr. Matibag. Yes, sir.

Mr. Vinluan. Was it a subpoena—

Representative Luistro. Objection, Your Honor.

Mr. Vinluan. Asked and answered, Your Honor.

The Presiding Officer. Asked and answered.

Mr. Vinluan. Was it a *subpoena ad testificandum*, or *duces tecum*, or both?

Mr. Matibag. I recall that it is *subpoena duces tecum* and *ad testificandum*.

Mr. Vinluan. Okay. And you appeared on various dates, but you appeared on April 29, 2026, correct?

Mr. Matibag. April 29, yes, sir.

Mr. Vinluan. All right. Now, you issued Administrative Order No. 11 on April 16, 2026, correct?

Mr. Matibag. Yes, sir.

Mr. Vinluan. So, AO 11 was issued only 13 days prior to your appearance before the mini-trial?

Mr. Matibag. So, April 16—29 minus—that's about it, 13 or 12 days, sir.



Mr. Vinluan. All right. And this was one of the documents that you submitted by virtue—

Representative Luistro. Your Honor—

Mr. Vinluan. I have no question, Your Honor, yet—

Representative Luistro. Yes, Your Honor, but I just want to enter a continuing objection to the use of “mini-trial.” It was never a mini-trial; it is a clarificatory hearing.

Mr. Vinluan. Your Honor, just a short rejoinder.

The Presiding Officer. You may proceed, counsel.

Mr. Vinluan. With all due respect, isn’t Representative Luistro the one who termed such proceeding as a “mini-trial”? We just want to inquire of Representative Luistro.

Representative Luistro. May I respond, Your Honor?

The Presiding Officer. The lead prosecutor may respond. Thereafter, we shall continue. Yes, what is your response, Counsel?

Representative Luistro. The prosecution has been very consistent that what we did in the Committee on Justice of the House of Representatives is never a mini trial. It is a clarificatory hearing, consistent to the House Rules on Impeachment, and even consistent to the provisions of Article XI of the Constitution.

The Presiding Officer. The continuing objection of counsel, lead prosecutor, is duly noted in regard to the line and words used by Counsel for Respondent. Counsel for Respondent may proceed.

Mr. Vinluan. All right. So, going back, this was one of the documents that you submitted by virtue of the *subpoena duces tecum*, correct? AO No. 11.

Mr. Matibag. Yes.

Mr. Vinluan. In fact, AO No. 11 was first mentioned in public during that April 29, 2026, hearing, correct?

Mr. Matibag. In that hearing, yes. But I never—I cannot recall if it has been made public before.

Mr. Vinluan. All right. But you mentioned it in that hearing.

Mr. Matibag. I think it was mentioned, yes, sir.

Mr. Vinluan. All right. Now, AO 11 pertains to the creation of a special task force. Is it not?

Mr. Matibag. Yes, sir.

Mr. Vinluan. All right. And according to the whereas clause, and I will read it, and I’ll quote it, it says, “Threats to the life of the President constitute a grave offense with far-reaching implications on national stability, public safety, and the continuity of government.” Do you confirm this?

Representative Luistro. Your Honor—

Mr. Matibag. Sir, may I request for a copy of the document—

Representative Luistro. Yes, please.

Mr. Matibag. —so that I can examine it.

Mr. Vinluan. Very well.

Mr. Matibag. Thank you.

Mr. Vinluan. May I ask my co-counsel, Your Honor, to provide Director Matibag—

The Presiding Officer. Assisting Counsel for Respondent may approach.

Likewise, assisting Counsel for the Prosecution may approach the witness.

Mr. Matibag. Yes, sir.



Mr. Vinluan. All right. My question is this: Are threats to the life of the Vice President constitute a grave offense with far-reaching implications on national stability, public safety, and the continuity of government?

Representative Luistro. Your Honor, objection, please.

Mr. Vinluan. What's the ground, Your Honor?

The Presiding Officer. What is the ground for the objection?

Representative Luistro. The question of the defense is speculative.

The Presiding Officer. Overruled. Witness may answer.

Mr. Matibag. The threat to the President and all other high government officials, like the Senate President, the Chief Justice, the Speaker of the House, or any other officers, is a threat to the national security and threat to public safety.

Mr. Vinluan. All right. Very well. Now, did you create a special task force to investigate on the threats to the life of VP Sara?

Mr. Matibag. There was none, to my recollection.

Mr. Vinluan. So, let us recall the interview of Dempsey Reyes of the Philippine Daily Inquirer. This is part, Your Honor, of Annex G 9 (GGGGGGGGG), of the Articles of Impeachment. And please direct your attention to paragraph 13 of the minutes of the meeting and allow me to read. Number 13: Are you aware of the threats—

Representative Luistro. Your Honor, please. May we confront the witness with the document?

Mr. Vinluan. Very well, Your Honor. We will provide the hard copy, and we will display also or flash on the screen a soft copy of such document.

The Presiding Officer. Assisting counsel for both parties may approach the bench and confront the witness with a copy of the document that the Counsel for the Respondent is referring to. Kindly proceed, counsel.

Mr. Vinluan. All right. It says, paragraph 13, or question and answer no. 13: "Are you aware of the threats?" Answer: "*May presscon kasi earlier than that, sabi niya parang, sabi niya lang, gusto daw siyang patayin daw*, according to her, *ni Speaker*. That was during a press conference the day before, November 22." So, my question is: Can you confirm that this is part of the NBI's own records?

Mr. Matibag. It reflected on the investigation report, so I presume it is.

Mr. Vinluan. All right. So, this is information regarding the threats to the life of VP Sara, is it not?

Mr. Matibag. *Nakalagay po doon, may threat daw po. Tama po.*

Mr. Vinluan. All right. And when you became NBI Director in February 20, 2026, did you conduct a *motu proprio* investigation to help her?

Mr. Matibag. I was informed by the investigating officers that it was considered—the threat that was mentioned to the Vice President. In fact, personalities were subpoenaed, including the Vice President, two times, in order to aid the National Bureau of Investigation in this investigation. However, to no avail, there was no attendance from the personalities that was invited.

Mr. Vinluan. All right. So, let me clarify: Under your leadership already, did the NBI subpoena VP Sara for this?

Mr. Matibag. We never subpoenaed because we noticed that every time proper subpoenas were issued to the Vice President, she would never attend a subpoena.

Mr. Vinluan. And your basis for saying that is the subpoena connected to the first investigation, correct?

Mr. Matibag. Not only that. In a lot of proceedings, including the proceeding in the impeachment at the House of Representatives, I noticed that she never attended.

Mr. Vinluan. So, that was your motivation for not issuing a subpoena. Anyway, under your leadership—

Representative Luistro. Your Honor, please. May I move to strike from the record the word “motivation”? The witness never said motivation.

The Presiding Officer. Let it remain in the record. Counsel may proceed.

Mr. Vinluan. All right. So, under your leadership, did the NBI subpoena former Speaker Martin?

Mr. Matibag. *Wala pa po.*

Mr. Vinluan. *Wala.* But do you intend to issue a subpoena against him?

Mr. Matibag. Actually, when we’re investigating the issue on the 18 Marines, if the 18 Marines was able to issue their statement properly, we intend to subpoena Speaker Martin Romualdez.

Mr. Vinluan. Okay. So, under your leadership, did the NBI subpoena those who were present during that November 22 presscon?

Mr. Matibag. There were personalities that were subpoenaed. In fact, I noticed that you have presented a subpoena yesterday.

Mr. Vinluan. Yeah. But isn’t it that those subpoenas were under the leadership of Director Santiago?

Mr. Matibag. Well, as to the investigation at that time, it was already been the subject of a resolution pending before the Department of Justice.

Mr. Vinluan. So, in other words, insofar as the alleged threats to the President, there is an ongoing investigation; but in terms of the alleged threats against the Vice President, there is no ongoing investigation.

Mr. Matibag. Because there is a big difference, Your Honor.

Mr. Vinluan. Okay. How about Princess Maui, for example, from the November 23 presscon? Was she subpoenaed under your leadership?

Mr. Matibag. No.

Representative Luistro. Asked and answered question, Your Honor.

Mr. Vinluan. This is the first time about Princess Maui, Your Honor.

Representative Luistro. Your Honor, it has been asked already during the cross.

The Presiding Officer. No, the ground is correct — asked and answered. Meaning, the witness already answered, “No, he did not.” Counsel may proceed.

Mr. Vinluan. All right. But you mentioned a while ago that there were two subpoenas issued against VP Sara, correct?

Mr. Matibag. Yes, sir, based on the record that was turned over to me.

Mr. Vinluan. Yeah. But those two subpoenas were issued by former Director NBI Santiago and not under your leadership.

Mr. Matibag. By the National Bureau of Investigation, yes, under the leadership of Director Santiago.

Mr. Vinluan. But just to clarify, under your leadership, no subpoena.

Mr. Matibag. The subpoena—

Representative Luistro. Asked and answered, Your Honor.

The Presiding Officer. Asked and answered. Move on, counsel.

Mr. Vinluan. All right. I’ll move on. Now, you mentioned yesterday that for grave threats and inciting to sedition, these are still pending before the DOJ.

Representative Luistro. Asked and answered, Your Honor.

The Presiding Officer. Asked and answered, counsel. Move on.

Mr. Vinluan. All right. You likewise mentioned yesterday that you have an ongoing investigation. And my question is: Is this for the alleged contracting for the assassination?

Mr. Matibag. Yes, that was very clear. I was able to explain that yesterday.

Mr. Vinluan. Okay. And particularly, the ongoing investigation pertained to the leads that you have to the alleged person that VP Sara talked to?

Mr. Matibag. Among others, Your Honor.

Mr. Vinluan. All right. But no subpoena has been issued to such alleged person under your leadership?

Mr. Matibag. Because we are under a case build-up status. It is an ongoing investigation, as mentioned yesterday, sir.

Mr. Vinluan. Okay. Now, let me just clarify. In a subpoena, the NBI must specifically identify the felony or crime for which you are issuing the subpoena. Is that not the case?

Mr. Matibag. Yes, we provide what is the crime that we'll investigate.

Mr. Vinluan. Okay. Very well. So, here, what will be the felony or crime that will be indicated in the subpoena?

Mr. Matibag. But you have to remember, we also have the mandate to protect the Constitution, to protect the peace and order. And if it goes to the national security and peace and order, we are also mandated to investigate.

Mr. Vinluan. Your Honor, with all due respect, Your Honor, the answer was not responsive.

Representative Luistro. Your Honor—

Mr. Vinluan. My answer was very specific—my question was very specific. What will be the felony or crime that will be indicated in the subpoena?

The Presiding Officer. Witness will please answer. The question was simple: What is the crime, if any, or penalty in relation to the document being asked by the counsel?

Mr. Matibag. We all know that there is no crime committed when there is a plan to kill until it is executed. But what I'm saying, that's why I'm qualifying, is because one of the mandates of the National Bureau of Investigation is to protect the national security, and we are also mandated to issue a subpoena for an investigation to do so. So, if in this case we cannot issue a subpoena, we can issue an invitation for those persons of interest.

Mr. Vinluan. So, you cannot issue a subpoena, but just an invitation. In other words, this is not under the jurisdiction of the NBI, correct?

Mr. Matibag. It is within the power of the NBI to protect the national interest and the national security, and as mentioned, there is a continuing threat to the President. And under Section (g), Section 5, of Republic Act 10867, it is one of the primary duties of the NBI to protect the security of the President.

Mr. Vinluan. All right. Yesterday, you also mentioned betrayal of public trust, correct?

Mr. Matibag. That is correct.

Mr. Vinluan. Can that be indicated in the subpoena when you issue it against this alleged person?

Mr. Matibag. It can be, or it can be not. But why will we put the subject betrayal of public trust if the person being subpoena is not being tried for betrayal of public trust?

Mr. Vinluan. What if it's against the Vice President? Just to clarify, can the subpoena indicate betrayal of public trust?

Mr. Matibag. We cannot put that because that is not a subject of a case under the Revised Penal Code or a crime. The betrayal of public trust is the very well subject of an impeachment court.

Mr. Vinluan. All right. So, you admit, nonetheless, that betrayal of public trust is a ground for impeachment, correct?

Mr. Matibag. That is correct. I think it's in the Constitution.

Mr. Vinluan. All right. And are you saying that once you reach your findings—because we're all waiting for that—is it correct to say that you will file another impeachment case against VP Sara?

Mr. Matibag. Oh! Thank you for that question, so that I can explain.

Representative Luistro. Objection, Your Honor—that is speculative.

The Presiding Officer. I think the witness is competent enough and, in fact, thanked the counsel for his question. I'm interested to hear what the witness will also answer.

Mr. Matibag. Thank you, Mr. Presiding Officer.

The betrayal of public trust, as the issue in the Impeachment Court, we don't need to investigate even if we pinpointed the person contracted. Because the point being is, the betrayal of public trust has already been consummated when she publicly admitted—there is already an admission—that she contracted a killer, a *mamamatay-tao*, or assassin, to kill the President. And that itself is already an admission. *At sinabi pa niya, "Pumayag na iyong kinausap kong mamamatay-tao."* That constitutes betrayal of public trust. Why? Because the oath of office of the President, *sabi niya*, she will execute the law and do justice to everyone. So, *pag nagbalak kang pumatay at ginawa mo iyan*, that is no justice to everyone. It's not execute the law; execute the President *iyong gusto mong gawin diyan*.

Mr. Vinluan. Your Honor, with all due respect, Your Honor, I know that NBI Director took pains in explaining his answer, but his answer already contains conclusions of fact and law. And may we ask, Your honor—

Representative Luistro. May I respond, Your Honor?

Mr. Vinluan. I'm not yet done.

In keeping, Your Honor, with this Court's ruling last week, may we ask, Your Honor, that it be stricken off the record, Your Honor? My answer was pretty simple, and it's not—My question was pretty simple. Sorry.

The Presiding Officer. Lead prosecutor.

Representative Luistro. Your Honor, *ang depensa po ang nagtanong kung mapapatunayan na nag-commit ng betrayal of public trust, kung sasampahan pa ng impeachment ulit. At sinasagot lamang po ng testigo, consummated na ang betrayal of public trust dahil may kausap ng tao na pumayag na to execute the President, the First Lady, and the former Speaker.*

Mr. Vinluan. That is precisely the ground for our motion, Your Honor. Can we get a ruling, Your Honor?

The Presiding Officer. The motion to strike off is denied. Let the answer of the witness remain in the records. That was his answer, Counsel.

However interpretative it may seem with respect to the law, since the witness was qualified yesterday as not only being the NBI Director but also engaged in the legal profession for decades and is, in fact, a former law dean. Let that remain in the records for the consideration of the senator-judges. You may proceed, Counsel.

Mr. Vinluan. All right. My question is this: Are you conducting your ongoing investigation to substantiate this current impeachment case?

Mr. Matibag. Again, *sinabi ko na po, kung ang pagbabasehan is betrayal of public trust, nandoon na po. Bakit po namin hinahanap iyong kinausap na papatay...*

Mr. Vinluan. With all due respect, Director, a simple yes or no will do.

Mr. Matibag. *Hindi po, dahil sinabi ko na nga...*

The Presiding Officer. Can you rephrase your question, Counsel?

Mr. Vinluan. So, are you conducting the ongoing investigation to substantiate this current impeachment case?

Mr. Matibag. No need to substantiate because it's already been established.

Mr. Vinluan. All right.

The Presiding Officer. The answer, Director Matibag, is you are not investigating anything in connection with the current ongoing impeachment case?

Mr. Matibag. Yes, because it's already been established.

The Presiding Officer. All right. Proceed, Counsel.

Mr. Vinluan. Insofar as the leads to this alleged person, do you share information to the Cybercrime Division?

Mr. Matibag. *Kasama po ang Cybercrime Division sa amin pong committee, kaya kung ano po iyong mga findings na nandoon, kasama po sila kung sila po ang pumunta. Subalit kung ito po ay meron pong level of security na hindi naman kailangang malaman ng Cybercrime Division, hindi po namin ito ibinabahagi sa kanila.*

Mr. Vinluan. All right. Because after all, the Cybercrime Division is part...

Representative Luistro. Your Honor, please.

Mr. Vinluan. What's the objection?

Representative Luistro. May we know if the Defense is making a manifestation or raising a question?

Mr. Vinluan. I am going to the question, Your Honor.

The Presiding Officer. He was about to ask a question, I believe, Counsel. Let's allow him to finish his question. Counsel may proceed.

Mr. Vinluan. Because the Cybercrime is part of the Special Task Force, correct?

Mr. Matibag. That is correct po.

Mr. Vinluan. How about Agent Lotoc, in particular? Do you share the leads to this alleged person with him?

Mr. Matibag. *Hindi po. Hindi po siya parte ng Special Task Force.*

Mr. Vinluan. But wasn't he part of the Cybercrime Division as well?

Mr. Matibag. *Hindi po. Siya po ay Regional Director ngayon ng BARMM.*

Mr. Vinluan. But he was once part of the Cybercrime Division?

Mr. Matibag. *Dati pa po iyon, noong hindi pa po ako Director.*

Mr. Vinluan. Now, let's go to the Special Task Force that you mentioned. You have one team leader and two assistant team leaders in your Special Task Force, correct?

Mr. Matibag. *Tama po.*

Mr. Vinluan. All right. And then, how many members from the NCR?

Mr. Matibag. *Ang NCR po, iyon po ang buong division na kasali at ang tumatayo po na representante dito ay iyong kanila pong Regional Director.*

Mr. Vinluan. But you mentioned that they are members of the Special Task Force. In your estimation, how many from the NCR are involved?

Mr. Matibag. *Ang NCR po, we give the freedom to the Regional Director kung ano pong aksiyon ang kailangan niyang aksiyonan, at kung ano pong team ang kanyang bubuun for purposes of doing a particular investigation in relation to the said task force.*

Mr. Vinluan. Your Honor, may we respectfully again ask that the Court give a directive to Director Matibag to give a more responsive answer? My question is how many, so, he can estimate a number.

Representative Luistro. May I comment, Your Honor?

The Presiding Officer. Counsel for the Respondent, the question was, how many? — and the answer of the good Director was it depends and it will depend on the NCR Regional Director how many he would assign. Witness will answer if he knows. If he does not, he may so respond as well.

Mr. Matibag. Well, Mr. Presiding Officer, sir, the thing is, *depende nga po kung ano po iyong magiging operation or surveillance na gagawin*, we give independence and autonomy *po doon sa Regional Director kung sino po at ilan ang ia-assign*. That's why *ang composition po ng Special Task Force ay binubuo po ng tatlong indibidwal at lima pong divisions po namin, dahil nga ang rason po nito ay ipinaliwanag ko po kahapon, masyado pong malawak iyong nagiging banta, na it already transcends to an issue of national security po*.

Mr. Vinluan. Okay. So, you cannot give a number?

Representative Luistro. Your Honor, asked and answered.

Mr. Matibag. *Kasi, depende nga po sa operations po*.

Mr. Vinluan. It depends— so no definite number.

The Presiding Officer. Let the Presiding Officer ask a clarificatory question: *Hindi naman po mutually exclusive iyong naka-assign na ahente po ninyo sa isang kaso lang, 'di ba?*

Mr. Matibag. *Tama po*, Your Honor.

The Presiding Officer. *So, iyong director ninyo ng NCR—kung ilan mang ahente ang nasa ilalim niya—posibleng lima, sampu, dalawampu, tatlung ibang kaso ang tinitingnan nila?*

Mr. Matibag. *Tama po*.

The Presiding Officer. *At kung ano man yung kasong may mainit o mainit na dapat pang hawakan o malapit nang makuha o mas maraming taong kailangan— lalagyan niya ng tao o tatanggalan din niya, depende kung saan kailangan?*

Mr. Matibag. Yes, Your Honor, *tama po*.

The Presiding Officer. So, is it correct to state that at any one time that number will change?

Mr. Matibag. *Tama po, eksakto po*.

The Presiding Officer. You may proceed, Counsel.

Mr. Vinluan. All right. So, that's for the NCR. Is it the same case for the Cybercrime Division or the CCD?

Mr. Matibag. *Sa lahat po ng units na nandoon, parehas po iyong ating pong protocol na ginagawa*.

Mr. Vinluan. But, just to clarify—I'll go through it one by one. So, it's the same for the Organized and Transnational Crimes Division?

Mr. Matibag. *Ganoon din po*.

Mr. Vinluan. All right. For the Technical Intelligence Division?

Mr. Matibag. *Tama po sapagkat standard po iyong procedure*.

Mr. Vinluan. All right. For the Digital Forensic Laboratory or DFL?

Mr. Matibag. *Tama rin po*.

Mr. Vinluan. All right. Now, are these members of this Special Task Force given additional salary for their work for the Special Task Force?

Mr. Matibag. I think that is not allowed *po* under the law. *Baka po bumagsak kami sa audit niyan or sa DBM po.*

Mr. Vinluan. *Ah, so, they're basically working with the Special Task Force for free?*

Mr. Matibag. *Hindi po libre, empleyado po sila, mayroon po silang sweldo, but parte po ng trabaho nila iyong ginagawa po nila.*

Mr. Vinluan. So, in other words, that's already part of their main job description?

Mr. Matibag. I think that's how the government system works *po*, respectfully.

Mr. Vinluan. All right. Now, yesterday you brought confidential records regarding your leads, correct?

Mr. Matibag. *Tama po.*

Mr. Vinluan. Did you bring those records again today?

Mr. Matibag. *Nandirito po, sa aking bayong po.*

Mr. Vinluan. And are these records from the Special Task Force?

Mr. Matibag. *Iba-iba po, halo-halo na po.*

Mr. Vinluan. *Halo-halo na po.* All right.

And you mentioned that you cannot share these records to the public. Is that the case?

Mr. Matibag. *Tama po, binanggit ko po kahapon.*

Mr. Vinluan. All right. Now, if the Honorable Court issues a subpoena, will you comply?

Mr. Matibag. *Pag-aaralan po natin—kung naaayon sa batas ay pwede nating ipagbigay-alam po sa Impeachment Court na ito.*

Mr. Vinluan. All right. Don't you believe that *ang katotohanan ay hindi confidential?*

Mr. Matibag. *Meron po tayong proseso na sinusunod. Kung ito man ay totoo at ito'y magba-violate po sa batas, baka hindi po natin ito dapat gawin.*

Mr. Vinluan. *Dapat hindi payagan?*

Mr. Matibag. *Hindi po sa hindi dapat payagan—I think, sa linya po ng iyong katanungan...*

Representative Luistro. Objection, Your Honor, the question is already argumentative.

Mr. Vinluan. I'll just move on to a new point.

Anyway, during the time of Director Santiago—and let me lay the basis. Around 15 months, they didn't identify the alleged person that VP Sara talked to. And based on your testimony yesterday, it will take three to six months—even more—for this Special Task Force to come up with definite findings as to the identity of this alleged person, correct?

Mr. Matibag. *Sinabi ko po, three to six months siya, hindi po even more.*

Mr. Vinluan. We will just check the transcript for that. But, at any rate, will this task force continue to exist and operate until you finally identify this alleged person or does it have a time limit?

Mr. Matibag. *Kailangan po naming matagpuan iyon pong taong binanggit na kinausap po.*

Mr. Vinluan. So as long as you cannot provide a concrete output, the Special Task Force will continue to exist?

Representative Luistro. Asked and answered, Your Honor.

The Presiding Officer. Asked and answered. Move on, Counsel.

Mr. Vinluan. All right. By the way, does NBI have intelligence funds?

Mr. Matibag. *Wala po, sir.*

Mr. Vinluan. *Ah wala*, all right. Now, you also mentioned about the RAGE Coalition event yesterday in Club Filipino on April 12, 2026, correct?

Mr. Matibag. *Tama po.*

Mr. Vinluan. All right. Now, this was already around 14 months from VP Sara's presscon, correct?

Mr. Matibag. *Tama po.*

Mr. Vinluan. Now, my question to you is this: Was VP Sara present in that April 12, 2026 event?

Mr. Matibag. *Wala po siya*, sir.

Mr. Vinluan. All right, no. Now, you mentioned also the concept of "kinetic force," can you recall?

Mr. Matibag. Yes, sir.

Mr. Vinluan. All right. Now, my question to you is this: Despite the lapse of 14 months and the absence of VP Sara in that event, you still concluded that this event was still part of what you call "kinetic force." Is that the case?

Mr. Matibag. *Tama po.*

Mr. Vinluan. All right. And based on your findings, this kinetic force came from VP Sara's November 23, 2024 presscon, correct?

Mr. Matibag. *Hindi lamang po yun. Ang sinabi ko po ay may pagkakaugnay sapagkat iyon pong statement na, "I want to cut his head." "Gusto kong kunin ang ulo niya." At ang sinabi din po ni Mayor Baste, "Isang ulo lang ang kailangan namin—ang ulo ni Pangulong Bongbong Marcos."*

Mr. Vinluan. All right. So, you mentioned also that there was a participant in a PBBM rally that shouted "*Barilin na 'yan!*" When did this happen, if you can recall?

Mr. Matibag. *Hindi po ito rally, mayroon pong event ang atin pong Pangulo sa Nueva Ecija na naka-live broadcast po ito sa RTVM, at mayroon pong nag-komento bigla na sinabi, "Barilin na 'yan."*

Mr. Vinluan. Can you recall the date of that that event, you said?

Mr. Matibag. *Hindi ko po ma-recall iyong eksaktong date, pero nandidito rin po sa files namin iyan.*

Mr. Vinluan. All right. But is this also part of the kinetic force that you mentioned?

Mr. Matibag. *Lumalabas po sa amin pong pag-aaral.*

Mr. Vinluan. How about *iyong nangyari kay Undersecretary Claire Castro in Canada*, is this also part of the kinetic force?

Representative Luistro. Irrelevant, Your Honor.

Mr. Vinluan. Your Honor, I'm trying to lay the basis, Your Honor.

The Presiding Officer. Witness may answer if he knows.

Mr. Matibag. Well, *ito na nga po iyong sinasabi natin, na nagkakaroon po ng malawakang kaguluhan na epekto po ng madalas na pagbabanta at seryosong pagbabanta sa Pangulo na ngayon ang mga taong kahit na ordinaryo ay inaatake po, hindi lamang ang Pangulo kundi ang iba rin pong nasa matataas na posisyon.*

Mr. Vinluan. So, the answer is yes, it's part of the kinetic force. So, in other words, this kinetic force can reach foreign countries?

Mr. Matibag. *Lumalabas po na ganoon dahil marami po tayong Pilipino na nandoon na napapanood po.*

Mr. Vinluan. That's okay, Director. Now, how about the flood control rallies, is this part of the kinetic force?

Mr. Matibag. *Iyong flood control rally na? Alin pong flood control rally? Be specific.*

Mr. Vinluan. Any flood control rally, is it part?

Mr. Matibag. Probably. *Baka po kung maaari lang po, sir, bigyan ninyo ako ng specific para po mas maipaliwanag ko po.*

Mr. Vinluan. I'll just move on.

So, any dissent against the government must be attributed to this kinetic force? Is that what you're saying?

Representative Luistro. Speculative, Your Honor.

The Presiding Officer. Witness may answer if he knows.

Mr. Matibag. *Depende po kung anong event. Kaya nga po ang ginagawa po ng NBI ay atin pong sinusuri lahat ng pangyayari. Kahapon po inilatag namin iyong limang batayan namin para po magkaroon tayo ng malinaw na threat assessment sa lahat po ng pangyayari.*

Mr. Vinluan. All right. Now, isn't it that Mayor Baste, and the participants in the PBBM event, the rallies in Canada, and the flood control rallies— don't they have a mind of their own?

Representative Luistro. Your Honor, we are objecting on the ground of vagueness. Kindly clarify the question.

The Presiding Officer. I also did not quite get the question. Kindly reform, Counsel.

Mr. Vinluan. So, are you saying that these people that I mentioned, they cannot act independently and are compelled by the kinetic force that you mentioned?

Representative Luistro. That is speculative, Your Honor.

Mr. Matibag. *Sino pong mga tao?*

Mr. Vinluan. Mayor Baste, and the participants in the PBBM rally, the rallies in Canada, and the flood control rallies.

Mr. Matibag. *Una po, there is no PBBM rally.*

Mr. Vinluan. No, no, sorry. PBBM event, sorry. I stand corrected.

Mr. Matibag. PBBM event, *iyong sa Canada. Tsaka, 'yun nga po, alin po bang flood control? Ibabalik ko lang po doon, pasensya na po, sir, ha. Para po mas ma-contextualize po nating mabuti.*

Representative Luistro. Yes, Your Honor, please. May we request clarification from the Defense?

The Presiding Officer. I think the question, Director Matibag, is *produkto po ba ng binabanggit ninyong kinetic force kahapon iyong mga pagkilos laban sa administrasyon at indibidwal na mga miyembro ng administrasyon?*

Mr. Matibag. Respectfully, Your Honor, *sapagkat marami pong—may pagkilos po ng iba-ibang grupo na nakita po natin.*

The Presiding Officer. *So, posibleng hindi. May pagkilos na hindi, may pagkilos na oo.*

Mr. Matibag. *Tama po. Kaya we have to qualify, we have to treat each event independently and apply the five-factor test that we are being applying po sa mga pangyayari po.*

The Presiding Officer. *So hindi porket laban sa o tutol sa gobyerno o sa partikular na opisyal ng gobyerno, ay ito na iyong binabanggit ninyong kinetic force kahapon?*

Mr. Matibag. *Tama po, Your Honor.*

The Presiding Officer. Counsel may proceed.



Mr. Vinluan. All right. My question is this: Is this kinetic force still active today, or has it stopped?

Mr. Matibag. *Malinaw po na may mga pangyayari pa rin po.*

Mr. Vinluan. And should we really stop this kinetic force? Or just allow it until 2028?

Mr. Matibag. *Hindi ko po... pakiulit po.*

Mr. Vinluan. Anyway, I'll withdraw that question and just move on to a different question. Is this kinetic force a legal concept?

Mr. Matibag. *Ito po ay konteksto base sa aming imbestigasyon. Again, ibabalik ko po roon sa aming limang naging batayan na ginagamit din po ng ibang hurisdiksyon para makapag-establish po ng isang threat para sa isang national threat assessment po.*

Mr. Vinluan. Again, just a manifestation that it's not responsive. But I'll just move on to a different point.

Representative Luistro. Your Honor, please.

The Presiding Officer. What is the pleasure of the Lead Counsel?

Representative Luistro. The Defense is making a side comment to the answer of the witness. Can we please remind him to avoid making side comments, as previously invoked by the Impeachment Court, Your Honor?

Mr. Vinluan. Then I will raise another motion, Your Honor, that the witness's answer is not responsive.

The Presiding Officer. Counsels, let this not be a debate between and amongst the two parties. Let the witness answer and give his testimony. Counsel, you may proceed.

Mr. Vinluan. All right. Was the RAGE Coalition event, a political rally?

Mr. Matibag. *Palagay ko po, sapagkat ang nandoon po na mga ano ay political party po ng PDP Laban at iyon pong REPORMA na pinangungunahan po ng dating Speaker Bebot Alvarez.*

Mr. Vinluan. All right. And as a lawyer and former dean *ba*, Director? Or current dean?

Mr. Matibag. *Former po.*

Mr. Vinluan. All right. So as a lawyer and a former dean, you are aware that political speech is constitutionally protected, correct?

Mr. Matibag. *Depende po kung ano ang talumpati.* You have to qualify.

Mr. Vinluan. And unless we are under Martial Law again, Mayor Baste should be able to freely express his dissent to the government?

Representative Luistro. Your Honor, that is speculative.

The Presiding Officer. Let the witness answer. He is competent to answer that question.

Mr. Matibag. *Unang-una, tama naman po kayo, wala namang Martial Law ngayon, at pwede naman pong magsalita but the freedom of expression has limitation also. Kung ito po ay nagba-violate na ng batas, at nakakasama na sa ating bayan ay hindi naman po ito kasama na sa freedom of expression.*

Mr. Vinluan. All right. But my question to you is this: Did he, directly, urge the people to overthrow the government in that rally?

Mr. Matibag. *Ang sinabi po niya base sa aking testimony ay "Isang ulo lang ang gusto namin, ang ulo ni Bongbong Marcos," at kung matatandaan po ninyo, I correlated it doon po sa mga dati pang mga pangyayari— hindi lang po iyong event at sinabi na iyon ang aming naging basehan, base sa aming pamantayan po sa pag-assess po ng banta o ng threat po.*

Mr. Vinluan. But that was your own interpretation of what happened, correct?

Mr. Matibag. That is not only my interpretation, but it's the interpretation of the National Bureau of Investigation— an investigation based on the standards that we follow, consistent to the standards we are following.

Mr. Vinluan. All right. Is it your interpretation that those also demonstrate destabilization efforts?

Mr. Matibag. Please repeat, *pakiulit po*, sir.

Mr. Vinluan. Is it also the NBI's interpretation that those remarks constitute destabilization?

Representative Luistro. Argumentative, Your Honor.

Mr. Vinluan. No, if the witness can answer.

The Presiding Officer. If he knows.

Mr. Matibag. *Ano pong partikular na sinabi?*

Mr. Vinluan. That speech by Mayor Baste, in general.

Mr. Matibag. *Iyon pong kaniyang sinabi na "ang ulo lamang ni Bongbong Marcos ang kailangan namin" at sabi ko nga*, in correlation to the other events, applying the five-factor standards that we have been using, which is recognized by other jurisdictions, *doon po kami nagkaroon po ng conclusion.*

Mr. Vinluan. Sorry, Director, I didn't quite get your answer. So, are you saying that that's destabilization or no destabilization?

Representative Luistro. Misleading, Your Honor.

The Presiding Officer. The Director hasn't answered yet. He cited the basis but cut short of answering the question.

So, is it based on the five pillars of your investigation, Director?

Mr. Matibag. Well, *doon po iyan*, based on the five pillars *natin po*, *lumalabas po na ang isa doon sa elemento ng five pillars*, it complies *po*, *sumasagot po doon*.

Mr. Vinluan. *So mayroon.*

Mr. Matibag. *At hindi po destabilisasyon, kundi banta po sa kaligtasan ng Pangulo, na naging banta na rin po sa pambansang seguridad po.*

Mr. Vinluan. So, you're admitting that there was no destabilization?

Representative Luistro. Argumentative, Your Honor.

Mr. Vinluan. No, Your Honor, it's connected to the question, Your Honor.

The Presiding Officer. Counsel, the witness has answered. For the appreciation of the senator-judges. You may proceed to a similar question or move on to another topic.

Mr. Vinluan. I'll proceed with a similar question.

Director, I'm showing you a news article. This is Exhibit D-IV-66 entitled, and I quote, "Palace dismisses destabil rumors vs Marcos admin." So, it was published quite recently, May 12, 2026. And for the sake of time, I will just read the first line thereof.

The Presiding Officer. Assisting counsel for the parties may approach.

Mr. Vinluan. It says here, and I quote, "Malacañang on Tuesday said it has not received any information about supposed destabilization efforts against President Ferdinand "Bongbong" Marcos Jr."

My question to you is this: Claire Castro speaks on behalf of PBBM, correct?

Mr. Matibag. Being the spokesperson, *tama po*, sir.

Mr. Vinluan. And based on her statement in this news article, there has been no destabilization efforts against PBBM, at least as of this date, correct?

Mr. Matibag. Well, *baka po dapat tingnan natin iyong buong konteksto*, because sa under a security cluster, *may pinag-uusapan po diyan. Maaaring ang tinitingnan niyan na walang destabilization*— there is no destabilization from the rank of men in uniforms. So *hindi po natin masasabi na iyon na iyong kabuuan talaga*.

Mr. Vinluan. All right. I'm showing another recent article, Exhibit D-IV-67. This article is June 12, 2026. So again, quite recent. And again, for the purpose of time, it's—I'll just read the title: it says, "Sara Duterte, I won't grab Marcos's position." My question to you is this: Isn't this news article also consistent with no destabilization efforts that Claire Castro previously mentioned?

Mr. Matibag. *Base po sa aking binabasa, baka mas maganda po si Vice President Sara Duterte makasagot nito*, because she's speaking of a state of mind *sa isip po niya iyan*.

Mr. Vinluan. But if you know.

Representative Luistro. Your Honor, may I comment?

The Presiding Officer. What is the comment of the Lead Prosecutor?

Representative Luistro. The witness never said that there is destabilization. As a matter of fact, what he said during the earlier question is, "Threat to the life of the President amounts to threat to national security." Now he is being asked about these pictures concerning destabilization. This is misleading, Your Honor.

Mr. Vinluan. Asked and answered, Your Honor.

The Presiding Officer. The observation of the Lead Prosecutor is noted; it is not an objection, Counsel. Proceed, Counsel for Respondent.

Mr. Vinluan. Now, yesterday, you identified an unsigned and unauthorized document which allegedly pertains to an Affidavit of Arturo Lascañas. Correct?

Mr. Matibag. Yes, sir.

Mr. Vinluan. All right. Now, if you know, is this the same Lascañas who appeared before the Senate in 2016 and 2017?

Mr. Matibag. Yes, sir.

Mr. Vinluan. Okay. So, in fact, this is the same Lascañas who was charged by the Senate panel led by then Senator and still Sen. Panfilo Lacson with a recommendation for perjury? Is he not?

Mr. Matibag. *Hindi ko po nabalitaan iyon kung na-charge siya ng perjury*, but if it's on record, then the answer maybe yes.

Mr. Vinluan. All right. Well, he was, or maybe we can confirm it later with Senator-Judge Lacson. And this perjury was committed during a Senate committee hearing, if you know only.

Mr. Matibag. Well, *siguro po, doon natin na lang ilagay doon sa affidavit po na nabasa ko*.

Mr. Vinluan. No, the only question is the perjury—

Representative Luistro. May I comment, Your Honor?

Mr. Vinluan. If you know only, that the perjury that was recommended for charging Lascañas—

Representative Luistro. Your Honor...

Mr. Matibag. I have no personal knowledge.

Mr. Vinluan. I am not yet done, Your Honor.

The Presiding Officer. I think—

Representative Luistro. Your Honor, the witness is incompetent to answer that question.

Mr. Vinluan. If he knows.

The Presiding Officer. Counsel, I think, the witness already said that he is not aware of it, but that if it is on the record, then most likely, it is true. That was the response of the witness earlier.

Mr. Vinluan. All right. I'll just move on to a new point. Now, allow me to read a statement of Senator Lacson, and then I'll ask questions thereafter.

Representative Luistro. May we request, Your Honor, that the witness be confronted with the document? I think the Defense is reading from a document?

Mr. Vinluan. Yes, Your Honor. We will provide a hard copy.

Representative Luistro. For the guidance of the witness, Your Honor.

Mr. Vinluan. We will provide the hard copy, and then we'll also show the soft copy on the screen, Your Honor.

The Presiding Officer. Assisting Counsel is authorized to approach from both parties.

Mr. Vinluan. All right. I will read and I quote, Senator Lacson. "*Ang maipapayo ko lamang kay SPO3 Lascañas: kung ang layunin ng inyong 'extrajudicial confession' ay mapanagot sa ilalim ng batas si Pangulong Rodrigo Duterte, at iba pang personalidad, marapat lamang na maliban sa inyong salaysay, may maipakita ka pang bukod at ibang ebidensya. Kung wala, ay maaaring masayang lamang ang oras ng mga tao dito dahil baka walang kahihinatnan ang isinasagawa nating pagdinig sa araw na ito laban sa sinumang mga taong idinadawit mo.*" Are you aware of this statement by Senator Lacson against Lascañas?

Mr. Matibag. *Ngayon po, nabasa ko po.*

Mr. Vinluan. All right. At any rate, you mentioned yesterday that you did an open-source investigation. To obtain the Lascañas document, correct?

Mr. Matibag. That is correct po, sir.

Mr. Vinluan. But to be candid, was it just a Google search?

Mr. Matibag. *Hindi po.*

Mr. Vinluan. Are you at liberty to disclose what method you used in that open-source investigation?

Mr. Matibag. We were provided, *dito po nagsimula iyan*; we got hold of a copy of the affidavit of Arturo Lascañas.

The Presiding Officer. With the permission of Counsel for the Respondent, the Chair will allow the intervention of Senator-Judge Lacson, given that his name was mentioned—in fact, not only alluded to but mentioned by Counsel for the Respondent.

MANIFESTATION OF SENATOR-JUDGE LACSON

Senator-Judge Lacson clarified that he did not file a perjury case against former witness Arturo Lascañas despite the fact that the witness retracted and changed his testimony during the investigation on the alleged extrajudicial killings (EJK) conducted by Senate Committee on Public Order, which he chaired. Reading from the committee report, Senator-Judge Lacson explained that the recommendation was merely to amend the Revised Penal Code (RPC) to increase the penalty for perjury.

CROSS-EXAMINATION BY THE COUNSEL FOR THE RESPONDENT

(Continuation)

The Presiding Officer. The manifestation is noted.

Counsel for the Respondent may proceed.

Mr. Vinluan. But are you at liberty to disclose who searched for that Lascañas document?

Mr. Matibag. *Ito nga po. Iyon pong dokumento, we got hold of it. Sabi nga po natin, meron po kaming mga tinatawag na amin pong mga informants at mga source. It was provided to us. Noong ibinigay po sa amin ito, hindi naman po ibig sabihin ay amin kaagad itong paniwalaan at tama po kayo—*

Mr. Vinluan. That's okay. I can ask subsequent questions regarding to that. So, actually, my question is, after you had obtained this document, did you subpoena Lascañas to verify the contents of those documents?

Mr. Matibag. *Hindi po.*

Mr. Vinluan. *Bakit?*

Mr. Matibag. *Sapagkat he is nowhere to be found.*

Mr. Vinluan. That's enough. So, without verification, you decided to believe the contents of the document that you obtained?

Mr. Matibag. *Again, ibabalik ko po roon sa lima nating factors; isinama lamang namin po ito, isa doon sa mga factors na sinasabi po natin iyon pong pattern of violence na tinatawag. At doon po, nandoon sa paragraph 270, sinasabi nga po na may kinalaman sa extrajudicial killing si dating Mayor Sara Duterte at in fact, ang sabi pa nga niya, huwag ninyo nang barilin kidnapin ninyo na lang. Pero bago po kami dumating doon sa punto na gamitin iyong, tiningnan na po naming iyan. Sapagkat—*

Mr. Vinluan. All right. Sorry to interrupt you. So, the short answer to my question is 'yes.'

Mr. Matibag. *Pakiulit po iyong tanong ninyo.*

Mr. Vinluan. The question is, did you decide to believe the contents of the document without verifying it with Lascañas?

Mr. Matibag. *Iyon nga po iyong sagot ko po, hindi kaagad. Kaya po ikinukuwento ko nga kung paano po namin nagamit iyon. So, hindi po kaagad namin pinaniwalaan.*

Mr. Vinluan. Okay.

Representative Luistro. Your Honor, may I just manifest that the Defense is actually misleading already the witness. He kept on raising the question: Did you believe right away? Well, as a matter of fact, the witness is explaining—

Mr. Vinluan. Your Honor, I never meant—sorry.

The Presiding Officer. Counsel, can you let the Lead Prosecutor finish.

Representative Luistro. The witness has been saying that he did a lot of things after receiving the affidavits of Lascañas to the extent of going over the five factors that he testified to yesterday. But after that first question, so that means 'yes,' the Defense said 'yes' to his question: Did you believe to that right away, to that affidavit? The position of the witness, Your Honor, is 'no.' Because—

The Presiding Officer. Actually, asked and answered. Asked and answered by the witness. That is his response, Counsel for Respondent to your question. Move on, Counsel.

Mr. Vinluan. Yes, Your Honor. We are satisfied with that answer. But, another follow-up question. So, without verifying it—

Representative Luistro. That's misleading, Your Honor.

The Presiding Officer. Allow him to finish the question, Counsel.

What is the pleasure of Senator-Judge Cayetano (A)?

Senator-Judge Cayetano (A). Just on your ruling, may I be clarified? Because the question was, "*Pinaniwalaan mo ba?*" Ang sagot niya, "*hindi kaagad.*" So, Counsel was asking for 'yes' or 'no.' I just want to be clarified. "*Hindi pinaniwalaan agad,*" does that mean afterwards pinaniwalaan mo na, or never mo pinaniwalaan? Just so that the record is clear. Just that clarification.



The Presiding Officer. Thank you, Senator-Judge Cayetano, Senator Cayetano (A).

Witness will please answer.

Mr. Matibag. Yes, Your Honor. *Kaya ko nga po ikinukuwento iyong buong pangyayari para po makita kung paano po kami dumating doon sa punto na ginamit po doon sa pattern of violence iyon pong affidavit na ito.*

The Presiding Officer. So, *liwanagin ko po*, Director Matibag.

Mr. Matibag. *Opo.*

The Presiding Officer. *Hindi niyo agad pinaniwalaan noong simula. Pinadaan niyo doon sa inyong SOP sa imbestigasyon. Kalaunan, pinaniwalaan na ninyo at sa ngayon, pinapaniwalaan po ninyo iyong nakasaad doon sa dokumentong iyon?*

Mr. Matibag. *Kalaunan po, ito ay ginamit na namin na isa sa basehan po doon sa pattern of violence pagkatapos po naming idaan sa proseso po.*

The Presiding Officer. So, *pinaniwalaan ninyo—pinanghawakan ninyo na, kumbaga?*

Mr. Matibag. *Sa ngayon po, tama po*, Your Honor.

The Presiding Officer. Okay.

Mr. Vinluan. And *pinapaniwalaan niyo iyon* without issuing a subpoena to Lascañas and clarifying the matter with him?

Representative Luistro. Asked and answered, Your Honor.

Mr. Vinluan. It's a different question, Your Honor. We're already at this point—

The Presiding Officer. Witness may answer.

Mr. Matibag. *Pakiulit po.*

Mr. Vinluan. So, you mentioned *na pinapaniwalaan niyo na siya ngayon*, as clarified by the Chair, so are you saying that *pinapaniwalaan niyo na ngayon* without issuing a subpoena to Lascañas and verifying it with him?

Mr. Matibag. *Hindi po nag-issue ng subpoena kay Lascañas pero meron pong naging verification process.*

Mr. Vinluan. All right. But not with Lascañas who is the author of that document?

Mr. Matibag. Asked and answered po, Your Honor.

The Presiding Officer. The Presiding Officer would like to remind the witness to kindly avoid making a ruling for in behalf of the Presiding Officer.

Mr. Matibag. *Pasensya na po*, Your Honor.

The Presiding Officer. But the gentleman would have been correct, the Presiding Officer would have said the same thing. Thank you for saving me the trouble. But try to avoid that, Director Matibag.

Mr. Matibag. Sorry *po*, Your Honor.

The Presiding Officer. All right. Thank you. Counsel may proceed.

Mr. Vinluan. All right. Director Matibag, yesterday you identified two videos. And you related it with the alleged pattern of behavior of VP Sara, correct? The first video that you showed, I think, involved the sheriff.

Mr. Matibag. *Tama po.*

Mr. Vinluan. All right. But that incident, will you confirm that that incident took place on July 1, 2011?

Mr. Matibag. Yes, long time ago *po*.

Mr. Vinluan. So, around 15 years ago?

Mr. Matibag. *Tama po.*

Mr. Vinluan. And did you still find it relevant to use that video?

Mr. Matibag. Under *po doon sa* five factors *namin, ang tinitingnan po natin sa* pattern of violence is the historical behavior.

Mr. Vinluan. All right.

Mr. Matibag. *Kasama po yun.*

The Presiding Officer. With the permission of Counsel for Respondent, what is the pleasure of Senator-Judge Hontiveros?

Senator-Judge Hontiveros. If I may, Mr. Presiding Officer, before the Defense moves on to a next question, just to ask a follow-up question of the previous topic.

The Presiding Officer. On this matter?

Senator-Judge Hontiveros. On the matter of the Lascañas affidavit, Mr. Presiding Officer.

The Presiding Officer. The lady may proceed with that question on Lascañas only.

QUESTIONS OF SENATOR-JUDGE HONTIVEROS

Senator-Judge Hontiveros. *Salamat po*, Mr. Presiding Officer.

Follow-up question, Mr. Witness. According to your testimony yesterday, you reviewed Arturo Lascañas's affidavit as part of the larger investigation concerning the Vice President's capacity to carry out the alleged threat. *Sa pagkakaalam po ninyo, Director, at batay din sa* larger investigation *na iyon, sinagot po ba ng Bise Presidente sa anumang paraan iyong mga alegasyon sa* affidavit *na iyon ni Lascañas?*

Mr. Matibag. Your Honor, *marami po kasi kaming—iyon nga po ang gusto kong ipaliwanag—marami po kasi kaming mga na i-consider na tinatawag natin po na open-source intel, iyan po iyong mga news, mga report, at noong tinitingnan po namin iyan, si Arturo Lascañas, meron pa po siyang lumabas na balita noon noong isinumite niya itong affidavit na ito sa ICC, at maalala ko po, meron din pong lumabas Sa balita na mismong si Vice President Sara Duterte, parang sinasabi po niya roon na hindi ko kailangan ng DDS para gumawa ng kayang gawin ng DDS, something to that effect, na i-consider po namin lahat po iyan.*

Senator-Judge Hontiveros. *Sa sinabi ninyong sinabi diumano ni Vice President, sinabi niya hindi niya kailangan ang DDS para gawin ang?*

Mr. Matibag. *Iyong kayang gawin ng DDS, something like that po.*

Senator-Judge Hontiveros. DDS.

Mr. Matibag. *Opo, hindi ko po eksaktong ma-recall iyong phrase na pagkakasabi po.*

Senator-Judge Hontiveros. *Salamat*, Mr. Witness. I may return to that point later today, Mr. Presiding Officer.

The Presiding Officer. The Lady may do so after the cross, redirect and re-cross when she avails her time. Counsel for Respondent may proceed.

CROSS-EXAMINATION BY THE COUNSEL FOR THE RESPONDENT (Continuation)

Mr. Vinluan. All right, let's go back to the sheriff incident. I'm glad you mentioned history or historical background. Are you aware that that sheriff incident pertains to relief operations that were being conducted by the Vice President? Then mayor at that time or Vice Mayor?

Mr. Matibag. *Ang pagkakaalam ko po doon sa balita na iyon, itong sheriff na ito was trying to enforce a valid order from a legitimate court, demolition order po ito na ayaw ipatuloy po ng*

then Mayor and now Vice President. So, I might not be aware of a relief operation, *baka po pwede ipaliwanag po sa akin?*

Mr. Vinluan. All right. Are you aware—I'll just ask you if you're aware—are you aware that it involved a flash flood? This incident happened after a flash flood in that particular community?

Mr. Matibag. *Hindi po lumabas iyan sa balita—*

Mr. Vinluan. If you know, if you know. All right.

Mr. Matibag. I have no knowledge of that.

Mr. Vinluan. Are you aware that VP Sara asked that sheriff for an extension of two hours just to help the victims?

Mr. Matibag. *Iyon po iyong lumabas sa balita.*

Mr. Vinluan. All right. And this sheriff and the demolition that you mentioned involved the demolition of informal settlers in that area?

Mr. Matibag. *Opo, kaya po may order of eviction, ibig sabihin po informal settlers po iyong papaalisin.*

Mr. Vinluan. Are you aware that the 30 people died during that incident?

Mr. Matibag. I have no knowledge of that, Your Honor.

Mr. Vinluan. So, in other words, are you also aware that it was the sheriff's refusal to provide the two-hour extension that's why VP Sara got angry?

Mr. Matibag. No, that is the claim of the then mayor.

Mr. Vinluan. If you know only, if you know.

Mr. Matibag. I have no knowledge of that.

Mr. Vinluan. All right. I'll move on to a new point.

Now, you also mentioned, to establish this alleged pattern of behavior, the October 18, 2024 presscon. Correct?

Mr. Matibag. *Tama po.*

Mr. Vinluan. And this presscon took place obviously before the material that you used or the November 23, 2024 presscon.

Mr. Matibag. *Tama po.*

Mr. Vinluan. All right. I'm showing you a video. Your Honor, we'll just show one video that is around one minute. This is Exhibit D-IV-53, and the USB separately marked D-IV-47, and then I'll ask you questions after that.

The Presiding Officer. Kindly play the video? The tech through the Clerk of Court is so directed.

[Video Presentation]

Mr. Vinluan. All right. So, is this the video—first of all, did you watch this whole video, Director Matibag?

Mr. Matibag. I watched but not the entirety of the video.

Mr. Vinluan. Not the entirety. Because it's a long video, it's almost two hours.

Mr. Matibag. That's correct.

Mr. Vinluan. But my question to you is this: is this the video where you based your finding that VP Sara said "*gusto kong tanggalin ang ulo niya*," "imagined cutting his head off." Is this the one?

Mr. Matibag. *Iyan po ang video na iyan.*

Mr. Vinluan. All right. And will you agree with—*ah* no, wasn't this presscon heard by the general public?

Mr. Matibag. *Opo.*

Mr. Vinluan. And didn't VP Sara say her statements in jest?

Representative Luistro. Speculative, Your Honor.

Mr. Vinluan. Your Honor, the witness is part and competent enough to answer.

Representative Luistro. Nevertheless, Your Honor.

The Presiding Officer. Witness may answer.

Mr. Matibag. Well, again, I will say I cannot go into the state of mind of the Vice President and precisely the reason why *doon sa* pattern of violence, *kasama po talaga iyan iyong pagkino-consider natin*. I understand her disgust *doon sa nangyari*, but probably *kapag pinagsama-sama po iyong amin pong imbestigasyon, maraming napanood, kasama po iyan*. *Doon po namin na-establish iyong isa doon sa limang factors na pattern of violence.*

Mr. Vinluan. Yeah. I understand what you're saying, but my question to you is: didn't you take VP Sara's statement out of context?

Mr. Matibag. *Mahirap po para sa aming law enforcement na iyong ganyang mga statement ay amin pong babalewalain. Katunayan, alam naman po natin kahit nga biro, halimbawa po 'yong bomb joke nga po sa eroplano, hinuhuli natin.*

It's a different thing if you're doing a bomb joke diyan sa eroplano tsaka sa open field na kayo lang.

So, sa amin po sa law enforcement, we have to give credence to that and i-process po namin.

Mr. Vinluan. So, at any rate, you consider this portion of VP Sara's statement to be a grave and serious threat based on the standards that you mentioned yesterday?

Mr. Matibag. *Hindi po 'yan ang sinabi ko. Ang sinabi ko po, kasama siya doon sa ikinonsider na marami pong factors para ma-establish po ang pattern of violence.*

Mr. Vinluan. Isn't that kind of a stretch?

Representative Luistro. That's argumentative, Your Honor.

The Presiding Officer. Argumentative.

Move on, Counsel.

Mr. Vinluan. Nothing further, Your Honor.

Mr. Matibag. *Salamat po, Sir.*

MANIFESTATION OF THE COUNSEL FOR THE RESPONDENT

Attorney Vinluan informed the Court that, in relation to Senator Hontiveros' interpellation, Vice President Duterte had never been given an opportunity to formally respond to the Lascañas Affidavit. He further stated that said affidavit was not part of the impeachment complaint filed against the Vice President. Presiding Officer Escudero noted the manifestation.

QUESTIONS OF SENATOR-JUDGE TULFO (E)

Senator Judge Tulfo (E). Thank you, Mr. Presiding Officer.

Sa atin pong testigo, kahapon po, nabanggit ho ninyo na mayroon na po kayong persons of interest na umano'y kinausap na po ni Vice President Sara Duterte para patayin umano ang Pangulo, First Lady, at former Speaker of the House. Ang tanong ko po, paano pala ho ninyo

ito natalisod o natunton ang impormasyong ito, gayong sa kanya pong presscon, wala naman po siyang sinabi kung sino ang mga taong ito? Sinabi niya lang na may kinausap na ho siya. How did you find out?

Mr. Matibag. Ganito po 'yan.

Sa lahat naman po ng kaso na hinahawakan po ng National Bureau of Investigation, para po maging successful ang aming pag-iimbestiga, ay nagre-rely po kami sa iba't ibang intelligence reports. Iyon nga po, may tinatawag tayong open-source intel, human intelligence, and we also use tools to monitor things. At nagti-trim down po tayo niyan, tinitingnan po natin hanggang dumating tayo doon sa punto na mayroon pong resolusyon ang atin pong kasong tinitingnan.

With regards doon po sa persons of interest, 'yong proseso ding iyan po ang atin pong sinundan.

Senator-Judge Tulfo (E). All right.

Without mentioning po kung sino itong mga tao na ito, or 'yung pagkakilanlan nila, kung nasaan sila, maaari po ba ninyong bigyan kami ng idea nitong mga persons of interest na ito, kung ano po talaga ang trabaho nila?

Kung sila po ba talaga ay mga hitman, o mga gun-for-hire, o riding-in-tandem?

Ano hong klaseng trabaho mayroon itong mga ito?

Mr. Matibag. Well, siguro po, ganito, although I cannot reveal so much on the identity, but going through the process na sinasabi ko nga po, so we're using informants. May mga sinusundan po tayo.

Ang unang-unang natin pong tiningnan diyan, iyon nga pong sinabi na kumausap ng papatay, at iyon pong papatay ay pumayag na.

So, ano pong ginawa natin dito? Tiningnan na natin kung saang sphere po papasok, saan ba pwedeng nanggaling iyon, hindi kaagad "sino." Saan po ba puwedeng nanggaling iyon? At lumalabas po rito, alam natin ang kasaysayan, malawak po ang kanyang tinatawag na koneksiyon—iyong network po. Alam naman natin na siya ay Bise Presidente at ang dating Pangulo ay kanyang ama, ibig sabihin naka-develop po ito ng mga relasyon—unang-una na sa mga men in uniform, na hanggang sa ngayon—marami po rito na na-appoint pa niya noong panahon na sila ay nandiyan. At nandyan din po, binanggit ko ang Vice President Sara's security group, at iyon pong mga Davao Death Squad.

So, tiningnan po natin, at tiningnan, by process of elimination, iyong mga tao po na maaaring doon nanggaling, or maaaring nakakaalam.

And by process of elimination, nag-start po kami—maraming individuals—hanggang sa ma-trim down po namin nang ma-trim down hanggang sa ngayon. Kaya sinabi ko po kahapon sa katanungan ng ating kagalang-galang na Senate President po, "Gaano ba katagal pa ito?" And I said, "We have great progress," dahil nagsimula po kami sa marami, ngayon na-trim down na po namin sa iilan na personalidad po.

Senator-Judge Tulfo (E). All right.

Pangalawa sa huling katanungan ko po, G. Testigo. Ito pong threat na ito, ito po'y hanggang ngayon eh continuing threat po ito, or puwedeng i-execute anytime ng mga sinasabi ninyong persons of interest?

Mr. Matibag. Iyon na po 'yung atin pong pangamba na nakikita, because hindi po natin nakukuha. Sigurado po tayo na may kinausap at pumayag, subalit 'yung pagkakakilanlan ng taong kinausap ay hindi pa rin po natin nakukuha.

So, ibig sabihin po, ang threat po na ito sa Pangulo is a continuing and active threat po, and serious. So, iyon po ang gusto nating i-address dito.

Senator-Judge Tulfo (E). Panghuling katanungan na lamang, Mr. Witness.

Na-inpormahan na po ba ang Pangulo at ang kanyang PSG para alam ho nila ang kanilang gagawin at hindi po sila malingat sa kanilang seguridad?

Mr. Matibag. *Mayroon po kaming tuloy-tuloy na pakikipag-ugnayan sa Palasyo po. I will not mention who exactly ang mga kausap po natin doon, but there's always continuing threat assessment po na ginagawa po kami.*

Senator-Judge Tulfo (E). Thank you, Mr. Witness.

Mr. Presiding Officer, thank you.

QUESTIONS OF SENATOR-JUDGE LACSON

Senator Judge Lacson. Thank you, Mr. Presiding Officer.

Follow-up lang ito doon sa mga points raised by Senator-Judge Raffy Tulfo kahapon relating to three similar cases: Ronald Mas, Mayor Baste Duterte, at saka VP Sara.

Hindi ko ibi-belabor iyong Ronald Mas and Mayor Baste, kasi aware naman ako doon sa Rule 113, Section 5, iyong sa warrantless arrest, na hindi puwedeng i-apply. Nagkamali nga ang NBI kay Ronald Mas kaya na-dismiss ang case, hindi po ba?

But I'm more interested in the cases of Mayor Baste at saka kay VP Sara. Kasi almost similar ang kanilang mga sinabi, pero I'm just wondering why you did not investigate Mayor Baste, pero si Mayor Sara, hindi lang kayo nag-investigate, nag-refer pa kayo ng complaint sa DOJ, hindi po ba?

Mr. Matibag. *Iyon po ang amin pong ginawang imbestigasyon, ay doon na po sa threat na sinasabi namin na pangmalawakan. Iyong dito po kay Mayor Baste, kaya hindi po natin na-inimbestigahan, isinasama po namin dito sa task force na ito, to come out with a report eventually, but we have coordination also po with our agencies.*

Senator-Judge Lacson. So, walang ongoing law enforcement investigation against Mayor Baste?

Mr. Matibag. *Kasama po dito sa ano po namin, sa Special Task Force po.*

Senator-Judge Lacson. *Iyon bang Special Task Force, and this was, you know, also raised by the Presiding Officer noong nasa Lounge kami kanina, na-form ba ito in reference to the case of Mayor Baste o kay Vice President Sara?*

Mr. Matibag. *Iyon pong trigger point na nangyari dito ay iyong kay Mayor Baste po. But prior to that, we are continuously monitoring the threat. Kasama po sa aming pag-uusap iyan. In fact, iyon pong aming reporting ng records as early as noong nag-assume po ako noong February, mga first week pa lang po ng March, kasama na po sa reporting iyong mga threat assessment. But noong napansin po namin na itong RAGE rally na ito can escalate to a bigger threat to the national security, doon po namin ipinasok ito.*

Senator-Judge Lacson. So, mas ang ginamit ninyo iyong kay Mayor Baste as an open-source kaysa mag-file kayo ng criminal complaint against Mayor Baste?

Mr. Matibag. *Ganoon po ang naging process namin dito. But, eventually, we have an agreement within us, that if we can establish that the elements for Grave Threat will be there, we will be contemplating also on filing a Grave Threat and Inciting to Sedition as well.*

Senator-Judge Lacson. *Pero halos pareho eh. Kaya iniisip ko, baka mayroong double standard.*

Bakit kayo nag-focus kay Vice President, pero hindi ninyo in-apply kay Mayor Baste? Eh halos pareho iyong sinabi nila, na maliwanag naman bukod doon sa January 2026, naulit pa noong April 12, hindi ba, na sinabing "Romanov" threat against the First Family, nasundan pa ng pupugot—"Ang kailangan lang namin iyong ulo." Pero kay Vice President, halos ganoon din, pero bakit inimbestigahan n'yo iyong kay Vice President Sara at nai-refer n'yo na sa DOJ for PI, pero iyong kay Mayor Baste, parang ang level ay nasa law enforcement investigation pa rin?



Mr. Matibag. *Sapagkat ang isa pong dine-develop namin dito na theory po is iyong sabwatan. And alam po natin, if we go to court using the theory of conspiracy, medyo mas mahirap na ipasok na kaso. Kaya it is taking much time to develop the case po.*

Senator-Judge Lacson. I request for additional time, Mr. Presiding Officer. *Punta lang ako kay Lascañas?*

Mr. Matibag. *Opo.*

Senator-Judge Lacson. *Iyon kay Lascañas, ginamit n'yo iyong kaniyang affidavit na isinabmit sa ICC?*

Mr. Matibag. *Tama po.*

Senator-Judge Lacson. *Parang pang open-source—*

Mr. Matibag. *Tama po, Sir.*

Senator-Judge Lacson. *—not for anything, hindi ba?*

Mr. Matibag. *Not for anything po, Sir.*

Senator-Judge Lacson. *So, walang evidentiary value ito?*

Mr. Matibag. *Iyon po ay ang basehan namin kaya po namin iprinesenta. Isa po sa naging basehan namin doon po sa isa nga roon sa five standards po natin na pattern of violence.*

Senator-Judge Lacson. *Pero wala kayong intention na kung magpa-file kayo ng kaso, isa-submit ninyo iyong affidavit niya na isinabmit sa ICC?*

Mr. Matibag. *As a matter of reference lang po, for the purpose of establishing the pattern of violence. But to directly papanagutin po sa isang krimen or what, sa palagay ko po, baka hindi ito tatanggapin ng Korte.*

Senator-Judge Lacson. *Yeah, kasi kung open-source, hindi nga tatanggapin ng Korte iyan.*

Mr. Matibag. *Tama po.*

Senator-Judge Lacson. *Kasi, kung open-source, kung nag-extend pa kayo, in-expand ninyo iyong open-source information gathering, dapat sana ni-review n'yo rin iyong aming committee hearing dito. Iyong na-mention kanina ng Defense na initially, deny nang deny talaga si Arturo Lascañas tungkol sa DDS, EJK, et cetera. Eventually, nag-retract siya, talagang 180 degrees. Sinabi niyang totoo iyong EJK. Hindi ba dapat part din iyon ng open-source information gathering ninyo?*

Mr. Matibag. *Tama po. Actually, noong binasa po namin iyong affidavit, may isang paragraph doon na nagtukoy nga riyan, na nag-testify, tapos binawi. Ang sinundan na po namin dito, at naalala ko po, meron kasi iyong report doon sa "24 Oras" after ng pre-trial sa ICC, nagkaroon ng interview kay Lascañas kung saan sinasabi niya iyong affidavit na ginawa niya na isinabmit sa ICC. At noong kinukumpara po namin doon sa sinasabi niya, lumalabas na iyon po.*

Senator-Judge Lacson. *Pangatlo na po iyon. Alam n'yo, iba iyong affidavit niya, iyong kaniyang testimony sa Public Order and Illegal Drugs Committee, which, as I said earlier, I chaired. Kaya alam ko iyong—familiar ako. Then after that, nag-retract siya. Talagang complete turn around.*

Mr. Matibag. *Tama po.*

Senator-Judge Lacson. *So, I even consulted a retired Justice na kaibigan ko, "Ano bang mas matimbang dito?" Ang sabi niya, ang talagang jurisprudence, iyong original na statement ang mananaig kaysa doon sa parang binaliktad na statement, which I also agreed. Ang point ko lang is, bakit parang namili lang kayo ng open-source?*

Mr. Matibag. *Tiningnan po namin—*

Senator-Judge Lacson. *Kung tiningnan n'yo iyong sa ICC na na-submit na pagkahababaha, sa akin nga pong sinabi kanina, pangatlo na po iyong magkaibang affidavits ni Arturo Lascañas—may nauna, may pangalawa, pangatlo na po itong pinapakita sa screen kahapon.*

Mr. Matibag. *Tama po. And we are also aware doon sa pagbali-baligtad. But on the news that I was mentioning po, Your Honor, mismong sinabi niya pipirmahan iyong affidavit, at sinabi po niya, "This is 186 pages." So, ang tinitingnan po namin, iyong statement na iyan, tumugma. Pangalawa, it has been the subject already of an ICC, it is being used as an evidence, at least, there is a legitimate court that is looking into it. It was considered, na ibig sabihin, tinanggap po ng isang lehitimo na korte po.*

Senator-Judge Lacson. I am not trying to put you on the spot. I am just trying to be fair. *Kasi, gusto ko talagang maliwanagan para pagdating ng takdang oras, alam ko iyong aking boto.*

Maraming salamat po.

INQUIRY OF THE PRESIDING OFFICER

Presiding Officer Escudero asked Representative Luistro whether the Counsel for the Prosecution intended to conduct a redirect examination. In response, the Lead Prosecutor stated that the Prosecution believed it had sufficiently established its position. Attorney Vinluan objected, arguing that the statement constituted a conclusion of fact and law.

The Presiding Officer sustained the objection and reminded the Prosecution to avoid making similar manifestations. He added that he would impose the same limitation to Attorney Vinluan should he make similar statements. He then inferred that the Counsel for the Prosecution would not conduct a redirect examination.

Thereupon, Representative Luistro confirmed that she had another manifestation to make.

MANIFESTATION OF THE PROSECUTION

Representative Luistro clarified that the Lascañas Affidavit was presented by the Prosecution solely as part of the witness's testimony. She stated that, as the Presiding Officer had reiterated three times, the affidavit was admitted as part of the testimony and as one of the documents considered in the investigation conducted by the NBI's Special Task Force. She further clarified that the Counsel for the Prosecution had never claimed that the affidavit was notarized.

She informed the Court that the Prosecution found it unnecessary to conduct a redirect examination.

REJOINDER OF COUNSEL FOR THE RESPONDENT

Attorney Vinluan manifested that, under the *Rules*, an affidavit must be testified to and identified by its author, which, he asserted, had not been done with respect to the document under consideration. He further stated that, because the affidavit was unsigned and unnotarized, the law considered it a mere scrap of paper.

REITERATION OF THE PRESIDING OFFICER

Presiding Officer Escudero stated that the Lascañas Affidavit had not been offered as an authentic document executed by the affiant, but solely as one of the documents used by Director Matibag in the NBI's open-source investigation, as previously clarified by Senator-Judge Lacson. He reiterated that the affidavit had not been offered to establish either its authenticity or the truth of its contents.

Representative Luistro emphasized that the Lascañas Affidavit was a signed document. The Presiding Officer expressed hope that his reiteration would finally lay the matter to rest.



QUESTIONS OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R). Mr. Witness, *kahapon naitanong ko sa inyo iyong kaso ni Ronnel Mas. Ngayon, itatanong ko sa inyo, pamilyar ho ba kayo sa kaso ni Ronald Quiboyen, Maria Catherine Seron, and Joemarc Ebcay?*

Mr. Matibag. *Narinig ko po sila.*

Senator-Judge Tulfo (R). *Ano po ang pagkakarinig mo?*

Mr. Matibag. *Sila po ay inaresto ng PNP-CIDG. Iyong isa po, I think, it is in Ozamiz, dahil mayroon siyang sinabi na patayin si dating Pangulong Duterte, at nag-offer ng P100 million na reward. Iyon naman pong Quiboyen, sa Boracay yata may offer din, if I am not mistaken, P150 million po yata na reward po.*

Senator-Judge Tulfo (R). So, *itong tatlo po, sa pagkakaalam ninyo, ano ang mga trabaho nito?*

Mr. Matibag. *Iyong isa po construction worker. Hindi ko po maalala iyong isang tao po.*

Senator-Judge Tulfo (R). *Iyong isa ay unemployed college graduate?*

Mr. Matibag. *Oo, ayun.*

Senator-Judge Tulfo (R). So, the reason why I asked that—*kasi tulad ni Ronel Mas, isang teacher, at itong tatlo mga ordinaryong mamamayan, i-compare natin doon sa ginawa ni VP Sara at saka ni Mayor Baste sa ating Pangulo, pagbabanta, almost the same iyong nangyari. So, kamay na bakal ang pinaiiral kapag mga ordinaryong mahirap na mamamayan, ang pinapairal ninyo diyan sa law enforcement. Pero kapag makapangyarihang mga tao, you treat them with kid gloves. Why is that?*

Mr. Matibag. Respectfully po, Your Honor, *unang-una, I cannot speak for the behavior of the law enforcement at that time. But I agree with you na iyong pag-aresto po sa kanila is warrantless arrest. That's the reason why na-dismiss po lahat ng kaso na iyon. Iyong sa ngayon naman po, iyong mga pangyayari na ito, we go to the case build up, and file a case. Katulad po noong nangyari kay Bise Presidente, mayroon pong naka-pending na kaso. At kung ito po ay mai-file sa korte, that is the time that the court may issue a warrant of arrest. So, mayroon po tayong prosesong sinusunod po.*

Senator-Judge Tulfo (R). *Mali nga iyong pagkaaresto, actually—warrantless arrest iyong nangyari noon. Pero mayroon bang nag-utos why it was done by the law enforcement people at that time? And what's the difference between the law enforcement back then and the law enforcement people now?*

Mr. Matibag. Well, I can only speak po for my Bureau na NBI. We are making sure that we are following the process and the law. In any case, *wala pong malaki o maliit na kaso. Ang tinitingnan po lagi natin dito ay ang ebidensya, ang batas, at ang prosesong dapat pong sundin.*

Senator-Judge Tulfo (R). Okay. I'll give you an example. *Halimbawa, iyong nangyari ngayon na pagbabanta sa ating Pangulo, nangyari noon sa panahon ni Pangulong Duterte, at nagbanta si Leni Robredo—halimbawa lang, of course, Leni Robredo would not do that kasi I know wala sa karakter niya—nagbanta si Leni Robredo kay Pangulong Duterte, at matindi iyong outburst niya at pagbabanta. At ganun din, nag-gawa ng follow-up ang kaniyang anak. What would have happened? Sa tingin ninyo ba, possible na mayroong gagawing pag-aaresto si PRD, tulad ng ginawang pag-aresto doon sa teacher, construction worker, at unemployed college graduate?*

Mr. Matibag. Well, respectfully, it's calling for an opinion, but *siguro mayroon po akong puwedeng pagbasehan base na rin po sa inyong sinasabi, na construction worker, teacher, ay inaresto dahil sa banta, ay posible po. May possibility na baka arestuhin po kaagad ang Bise Presidente noon.*

Senator-Judge Tulfo (R). Thank you, Mr. Witness.

QUESTIONS OF SENATOR-JUDGE VILLANUEVA

The Presiding Officer. Thank you, Senator-Judge Raffy Tulfo.

Senator-Judge Villanueva may proceed with his interjection when he's ready. You have two minutes, Sir.

Senator-Judge Villanueva. Thank you, Presiding Officer, Mr. President. Just two quick questions to our dear witness.

Your Honor, *malaking bahagi po*, Director Matibag, *noong sa talakayan dito sa Korte at ng buong sambayanan*, whether or not *natukoy na ba iyong sinasabing alleged tinutukoy ng Pangalawang Pangulo doon po sa kanyang video. At binanggit n'yo po na may inaasahan po kayong developments sa loob ng tatlo hanggang anim na buwan.*

Maaari po ba ninyong ipaliwanag, Director, sa pangkalahatan lamang po, kung ano po iyong layunin ng mga natitira pang bahagi sa imbestigasyon po ninyo? Just to clarify lang po, 'no? Kasi, when you testified that the individual's identity will become clearer, does it mean, Sir, that the Bureau is now focused on confirming or verifying the identity of a particular individual referred to by the Respondent, rather than determining whether such person exists in the first place? Kumbaga po, iyong tanong lamang po dito, eh, sinasagot po ay sino na iyong kinontrata, rather than – o hindi po iyong mayroon nga bang kinontrata.

Mr. Matibag. Your Honor, *dalawang bagay po para makarating po tayo doon sa kasagutan sa inyo pong katanungan. Una, sinabi ko na nga po with certainty, mayroong kinontrata. Ano po iyong basehan? Mismong ang Bise Presidente na, publicly—this is an extrajudicial admission—na tinanggap na niya at sinabi na niya na mayroon akong kinausap na mag-a-assassin o mamamatay-tao para patayin ang Presidente at siya ay pumayag. So that is an admission na mayroon po.*

Pangalawa, bakit po natin tinutukoy at hinahanap? Dito na po pumapasok iyong kailangan natin siyang makuha, hindi upang sabihin na kami talaga ay nag-usap ni Bise Presidente. Kasi iyon naman pong sinasabi ko nga, iyong pag-uusap na may papatay at hindi naman nagawa, wala naman po tayong pinag-uusapan na krimen doon. Pero ano po ba ang tinutugunan namin sa paghahanap namin sa tao na iyon, sa individual na iyon? Iyon na po iyong sinasabi namin that we have to address the issue of national security, the safety of the President, which is a primary mandate of the National Bureau of Investigation. Sapagkat ang banta po sa Pangulo, kapag ito ay seryoso, tulad po nitong banta na ito, ito rin po ay magdadaos ng ligalig, kaguluhan, at disrespect po sa ating law and order. And that is the very purpose of the existence of the National Bureau of Investigation.

Senator-Judge Villanueva. *Iyong binanggit n'yo ho na may mga persons of interest. So iyon nga po, 'no, tinutumbok na po nito na nandoon na po kayo roon sa sino ang kinontrata, rather than mayroon nga bang kinontrata.*

Mr. Matibag. *Tama po, Your Honor.*

Senator-Judge Villanueva. Thank you, Director Matibag.

Nabanggit niyo po kahapon din iyong parte ng network ng Respondent na tinatawag na Davao Death Squad. Batay po ito doon sa ebidensyang nakalap po ninyo, sabi niyo sa NBI, at mayroon po kayong nakikitang impormasyon na nagsasabi—ang gusto kong malaman kung mayroon po kayong nakikitang impormasyon na nagsasabi na aktibo pa rin po ba ito noong 2024 kaya naging part ito ng inyong assessment sa kapasidad ng Respondent?

Mr. Matibag. *Sa amin pong imbestigasyon, lumalabas na mayroon pa pong mga existing. At katunayan, without naming names, ganito po, ilagay na natin sa konteksto na nagsimula po kami sa maraming pangalan, and we've narrowed it down. Siguro ito na iyong inaanatay ng marami rin na finally ma-identify natin. We are narrowing it down already to less than 20 individuals, at may mga pangalan na po kami nito. Sa katunayan po, iyong iba po rito, kausap na po namin iyong kanilang mga pamilya o kakilala. So, ganoon po iyong proseso. That's why sinabi ko, baka in three to six months, we can finally identify kung sino iyong personalidad na iyon.*



Senator-Judge Villanueva. Let me wind up, Mr. Presiding Officer. In relation again to the Davao Death Squad that we were talking about, *aktibo pa po ba sila noong 2024? Aktibo pa rin po ba sila sa kasalukuyan, sa inyong nagpapatuloy na imbestigasyon?*

Tinatanong po natin ito, Ginoong Pangulo, para malaman natin kung iyong ginamit po ng National Bureau of Investigation ay base lamang doon sa historical background na binabanggit po kahapon, o mayroon po na nakalap na mga bagong impormasyon ang NBI na hiwalay na impormasyon tungkol po rito.

Mr. Matibag. Well, again, *kanina po tinanong po ng Kagalang-galang Senator Erwin Tulfo*, we are not limiting it to the Davao Death Squad. *Sabi ko nga po, mayroon pong mga aktibo pa sa serbisyo na men in uniform, at kasama rin po dito ang Vice President Sara's security group po.*

Senator-Judge Villanueva. So, even those who are actively involved right now in—I mean, men in uniform, is that what you're saying?

Mr. Matibag. That is something that I can say, because general *naman* between the two identities.

The Presiding Officer. Kindly wind up.

Senator-Judge Villanueva. That will be all, Mr. Presiding Officer.

Thank you, Director Matibag.

Mr. Matibag. *Salamat po.*

QUESTIONS OF SENATOR-JUDGE AQUINO

The Presiding Officer. Thank you, Senator-Judge Villanueva.

Senator-Judge Aquino is recognized. You may proceed Sir, when you're ready. You have two minutes.

Senator-Judge Aquino. *Maraming salamat, Mr. Presiding Officer.*

Isang tanong lang po kay Director Matibag. Doon po sa AO-11, nakalagay po doon iyong mga miyembro ng task force, 'no? At iyong isang miyembro po roon ay mula sa Transnational Crime Division.

Mr. Matibag. *Opo.*

Senator-Judge Aquino. *Nabanggit n'yo po noong isang araw na nasa punto na po kayo sa inyong imbestigasyon na tsine-check po ninyo kung hindi lang ito isang tao, pero kumbaga grupo na po ito, or may plot, may ploy, may nagkukuntsaba para dito po sa posibleng pagpatay kay President Marcos. So, nagtataka lang po ako sa AO-11, kasama iyong Transnational Crime Division. So my question is, sa inyo pong imbestigasyon, mayroon bang transnational nature itong posibleng pagpatay sa Presidente? Mayroon bang foreign intervention, or mga players na hindi po Pilipino sa inyo pong imbestigasyon?*

Mr. Matibag. *Iyon po ay isa sa purpose talaga kung bakit namin isinama para alamin kung sino po—alam naman po natin, para patayin ang isang presidente, hindi po isa o dalawang tao lang nag-uusap dito. You need iyong kakayahan po, iyong capacity. Doon po pumapasok. Kailangan ng pera, kailangan ng network, kailangan ng tao. So, tinitingnan po natin ito lahat. Ngayon, iyong binabanggit po ninyo, kasama po sa ating tinitingnan iyan. Pero ang isa pong mayoryang rason niyan, iyon pong mga pagbabiyaheng ating Pangulo. We have to also monitor it, because the possibility of endangering the life of the President during his time that is outside of the country, nandoon din po iyan dahil sa threat na iyan.*

Senator-Judge Aquino. Okay. So, *kaklarohin ko lang ha. So, iyong pagkakaroon ng Transnational Crime Division dahil iyan sa mga biyaheng Presidente, hindi dahil mayroong possible foreign intervention dito sa iniimbestigahan ninyong pagpapalano?*

Mr. Matibag. That is also an angle being considered, but that's not the main reason po.

Senator-Judge Aquino. All right. *Salamat.*

Mr. Matibag. *Salamat po.*

QUESTIONS OF SENATOR-JUDGE PADILLA

The Presiding Officer. Thank you, Senator-Judge Aquino. Senator-Judge Padilla is recognized. You may proceed Sir, when you're ready. You have two minutes.

Senator-Judge Padilla. *Maraming salamat po aming Ginoong Tagapamahala ng Hukom, at sa atin pong Ginoong Pangulo. Mayroon po akong katanungan para sa Prosekusyon. Sa akin pong mga kaibigan sa Prosekusyon, napakahalaga po sa bawat pagdinig ay nagsasabi ng katotohanan, tama po ba?*

Representative Luistro. *Tama po.*

Senator-Judge Padilla. *Kapag ang isang witness po ay naging halimbawa ng paiba-iba ang sinasabi, ano po ang tawag dito? Hindi po ba kasinungalingan?*

Representative Luistro. This is a hypothetical question, Your Honor.

Senator-Judge Padilla. *Opo.*

Representative Luistro. You are not referring to any particular witness?

Senator-Judge Padilla. *Si Lascañas po. Iyong inyo pong ipinakitang affidavit. Alam n'yo po—*

Representative Luistro. Your Honor—

Senator-Judge Padilla. *Hindi pa po ako tapos, kaibigan.*

Alam n'yo po, napakalungkot po para sa amin na marinig na mayroon kayong ibinigay na apidabit na nabahiran—dito po sa loob ng Senado, dito sa Plenaryo ng Senado—ay nabahiran ng matinding, masasabi nating kasinungalingan sapagkat magkaiba ang kaniyang sinabi.

October 3, 2016, sinabi niya, "Walang kinalaman ang Pangulong Rodrigo Roa Duterte."

February 20, March 6, naiba na ang istorya.

Ang tanong ko po, ano ang tawag sa taong paiba-iba ang sinasabi? Hindi ba po sinungaling?

Representative Luistro. May I answer, Your Honor?

Senator-Judge Padilla. *Opo, opo.*

Representative Luistro. *Kagaya po ng aking binigyan-linaw kanina, at paulit-ulit na rin pong sinabi ng ating Presiding Officer—*

Senator-Judge Padilla. *Pakisagot na lang po kasi iyon lang po ang tanong.*

Tama po ba o mali na tawaging sinungaling ang taong iba-iba ang sinasabi?

Representative Luistro. I'm sorry, Your Honor, but I need to qualify my answer.

Senator-Judge Padilla. Mr. Presiding Officer, *isang... isang simpleng tanong lang po.*

The Presiding Officer. The Lead Prosecutor may agree or disagree or state a different characterization. I can state a different characterization if I'm asked by the good Senator-Judge. You may disagree or agree with the statement of the Honorable Senator-Judge Padilla.

Representative Luistro. Your Honor—

The Presiding Officer. Feel free to say no or yes, Counsel.

Representative Luistro. *Kagalang-galang na mga Senator-Judges at sa atin pong mga nanonood na kababayan, dahil binanggit po ng kagalang-galang na Senador Robin Padilla ang pangalan at ang affidavit ni Arturo Lascañas, nais ko pong linawin ang kanina ko pong manipestasyon. Ito po ay iprinesenta sa Impeachment Court bilang bahagi ng testimonya ng witness.*

Senator-Judge Padilla. Mr. Presiding Officer, *hindi pa rin po sinasagot ang—*

The Presiding Officer. Lead Prosecutor, the response is not responsive to the question of Senator-Judge Padilla. Allow me to—if the good Senator-Judge will allow the Presiding Officer.

Puwede ba nating sabihin kay Lead Prosecutor na ang testigong pabago-bago ang kaniyang testimonya sa magkakaibang petsa o araw o panahon ay isang testigong hindi maaasahan?

Representative Luistro. Without particular reference to Arturo Lascañas—

The Presiding Officer. *Sa pangkalahatan, oo.*

Representative Luistro. I agree with you, Honorable Presiding Officer.

Senator-Judge Padilla. *Iyan.*

The Presiding Officer. *Posibleng nagsisinungaling siya sa isa, nagsasabi ng totoo sa isa, o nagsisinungaling sa isa, nagsasabi nang totoo sa isa, hindi na natin malalaman iyon. Tama po ba iyon?*

Representative Luistro. Without particular reference to Arturo Lascañas, I agree with you, Honorable Presiding Officer.

The Presiding Officer. Thank you.

Senator-Judge Padilla. *Maraming salamat po, aming Ginoong Tagapamahala ng Hukom.*

The Presiding Officer. You may proceed Senator-Judge Padilla.

Senator-Judge Padilla. *Opo. Kasi po, katulad po ng sinabi ng aming Senator-Judge “10,000 Hours” Panfilo Lacson, napakaliwanag po nang sinabi niya. At kami din po dito, ako po mismo, ay gumawa din ng panukala na dapat iyong mga nagsisinungaling dito, iyong mga paiba-iba ng testimony na nagiging aming mga witness, ay dagdagan dapat ang sentensya ng perjury. Kailangan amyendahan ang batas na iyan. Ngayon, bilang pakiusap po sa inyo, sa Prosekusyon, puwede po ba na sana ay maiwasan natin ang pagbibigay ng witness na may kasong perjury? Hindi na po ito si Lascañas. Ang sinasabi ko po ay iyong dalawang mahal nating witness, si Atty. Jeremy Lotoc at si NBI Agent Calilung na sa mga oras na ito ay may kasong hinaharap na perjury. Puwede po bang iwasan natin na may mga ganito tayong witness para—ang nasasakdal po kasi dito ay ibinoto ng 32 million na tao. Sana po, aming mga mahal na kaibigan sa Prosekusyon, ay isipin nating mabuti bago po tayo magbigay ng mga witness na may perjury na kaso o nagkaroon po kami ng dahilan na gumawa ng amyenda na itong perjury ay amyendahan. Puwede po ba iyon?*

Representative Luistro. Your Honor, with all due respect. I would like to take exception to the question and manifestation of the Honorable Senator-Judge Robin Padilla. First of all, we were able to verify already that there are no cases pending against the Prosecution witnesses. In addition, Your Honor—and only to respond to the concern of the Honorable Senator-Judge Padilla—*ang conviction po ay hindi ground for disqualification unless it is final and unless it is punishable by more than one year and that the crime constitutes moral turpitude.*

Senator-Judge Padilla. *Alam niyo po, napakaganda po ng inyong sagot. Sana hindi one-sided ang ating Prosekusyon. Kasi alam niyo, pag kayo ang—pag pabor sa inyo, alam n’yo bawal po ang ginagawa—*

The Presiding Officer. Kindly maintain order in the Court.

Senator-Judge Padilla. Mr. Presiding Officer, *bawal po ang ginagawa nitong nasa harap natin, nagkukume-kumento.*

The Presiding Officer. Kindly maintain order in the Court.

The Sergeant-at-Arms, by authority of the Senate President, is directed to kindly maintain order.

Senator-Judge Padilla. *Hindi po, hindi po sila allowed mag-ingay. Korte po ito.*

The Presiding Officer. Thank you. You may proceed Senator-Judge—who was speaking?

Senator-Judge Padilla. *Ako po.*

The Presiding Officer. You may proceed, Senator-Judge.

Senator-Judge Padilla. I was interrupted.

The Presiding Officer. With due apologies.



Senator-Judge Padilla. So, ibig n'yo pong sabihin, iyong mga Senator-Judges dito ngayon na humaharap sa kaso, na hindi po pinapayagan ng Ombudsman at hindi pa rin sila guilty, ano pong ibig n'yong sabihin?

Representative Luistro. Your Honor, with all due respect, ang question n'yo po kanina ay kaugnay ng pagtestigo.

Senator-Judge Padilla. Eh, testigo nga. Judges nga iyong nagsasabi.

Representative Luistro. Referring to the witnesses of the Prosecution, Your Honor.

Senator-Judge Padilla. Ang usapan po ay 'yung guilty or not guilty. Okay? So, tatanong na po ako ng bago. Puwede po ba?

Representative Luistro. May I be clarified, Your Honor, on your last question about the senator you said are facing cases?

The Presiding Officer. Lead Counsel, I think that was—

Senator-Judge Padilla. Alam n'yo po, malinaw na po 'yung sinabi ko, and wala po kayong karapatan magtanong sa Senator-Judge.

The Presiding Officer. Hindi. Liliwanagin ko nga po.

I think, Senator-Judge Padilla was making a manifestation and not posing a question to the Lead Prosecutor in relation to our two colleagues.

You may proceed, Senator-Judge Padilla.

Senator-Judge Padilla. Maraming salamat po, Ginoong Tagapamahalang Hukom.

Puwede na po ba tayong mag-advance ng katanungan?

Representative Luistro. Yes, Your Honor.

Senator-Judge Padilla. Opo. Iyon pong sinasabi ninyo, bakit n'yo po nababanggit ang ICC dito? Ano po ang kinalaman ng ICC dito sa ating pagdinig?

Representative Luistro. With all due respect, Hon. Senator-Judge Robin Padilla, kagaya po ng nabanggit ko na—at marahil panglima nang banggit ng Presiding Officer—nabanggit po ang ICC kaugnay ng affidavit ni Lascañas na iprinisinta po ng Prosekusyon bilang bahagi lamang ng testimonya ng witness at bilang bahagi ng naging imbestigasyon ng Special Task Force ng NBI.

Senator-Judge Padilla. Maraming salamat po.

The Presiding Officer. Senator-Judge Padilla will please wind up. You can avail of a second round if you wish.

Senator-Judge Padilla. Opo, opo. Maraming salamat po.

So, ibig pong sabihin, malinaw na kanina sinabi natin na hindi siya.

MANIFESTATION OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R) raised concerns regarding what he perceived as inconsistent enforcement of the two-minute time limit for the Senator-Judges to question the witness. He observed that some Senator-Judges were allowed to exceed the limit, while others from the majority were strictly limited to the two-minute rule.

Presiding Officer Escudero clarified that there were neither Majority nor Minority blocs in an Impeachment Court, saying that the Senator-Judges were all Members of the Court. He explained that the extension previously granted to Senator-Judge Lacson was upon the latter's request to complete his point, and that Senator-Judge Padilla had likewise been reminded to conclude after his allotted time had elapsed.

Senator-Judge Tulfo (R) underscored the need to observe the prescribed two-minute time limit to ensure that all Senator-Judges were afforded an equal opportunity to speak.

ORDER OF THE PRESIDING OFFICER

The Presiding Officer instructed the Clerk of Court to consistently notify the Senator-Judges when their allotted time had expired.

MANIFESTATION OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano noted that previous extensions had been granted, as he suggested that the Presiding Officer either standardize the practice by using a single signal or simply direct the Senator-Judge to wind up, consistent with the Court's earlier practice of allowing reasonable latitude to avoid unnecessary motions and prolongation of the proceedings.

While acknowledging that Senator-Judge Tulfo (R)'s observations were consistent with the *Rules*, Senator Cayetano (A) appealed for reasonable flexibility in dealing with Senator-Judges who might be differently situated in the course of propounding questions.

REMARKS OF THE PRESIDING OFFICER

The Presiding Officer stated that the points raised by Senators-Judges Tulfo (R) and Cayetano (A) would be taken under advisement.

MANIFESTATION OF SENATOR-JUDGE PADILLA

In response to Senator-Judge Tulfo (R)'s observation, Senator-Judge Padilla explained that although his questions were closed-ended, the Counsel for the Prosecution had been providing lengthy responses.

Presiding Officer Escudero directed Senator-Judge Padilla to conclude, while informing him that he could avail of a second round of questioning, as necessary.

QUESTIONS OF SENATOR-JUDGE PADILLA

(Continuation)

Senator-Judge Padilla. *Maraming salamat po. Magtatanong na po ako. Dito na po ako sa aking kaibigan.*

Maraming salamat po, kaibigan. Sa akin pong kaibigan, kay Attorney Matibag, mahal na saksi, mabilis lang po ito.

Ako po ay napunta sa PDP Laban dahil po sa inyo.

Mr. Matibag. *Tama po.*

Senator-Judge Padilla. *Opo. Kayo po ang kumumbinse sa akin.*

Mr. Matibag. *Tama po, campaign manager n'yo pa po.*

Senator-Judge Padilla. *Opo. At masasabi po natin na isa kayo sa nagpa-number one po sa akin.*

Mr. Matibag. *Tama po. Sa lugar po namin, number one po kayo.*

Senator-Judge Padilla. *Opo. Attorney Matibag. Sumama po ako sa inyo dahil alam ko na isa po kayo sa arkitekto ng pagkapanalo ni President Rodrigo Roa Duterte. Tama po ba?*

Mr. Matibag. *Hindi po. Sapagkat noong 2016, ako po ay campaign manager ng Region IV-A, ni Sec. Mar Roxas po.*

Senator-Judge Padilla. *Ayon. So, hindi po kayo connected noong panahon na iyon kay Pangulong Rodrigo Roa Duterte?*

Mr. Matibag. *Hindi po.*

Senator-Judge Padilla. *Opo. Kung kayo po ay nagtatrabaho sa mga iba't ibang politiko, kayo po ba ay matatawag na political analyst o political, ah, ah—ano bang tawag po doon—'yung mga nagsasagawa, nagpapatakbo ng politika ng bawat politiko?*

Mr. Matibag. *Well, maaari pong matawag na tayo ay tumutulong sa ating pinaniniwalaan na kung sino po ang dapat manungkulan sa ating bayan.*

Senator-Judge Padilla. *Opo. Ibig pong sabihin, puwede po kayong gumawa ng isang kandidato at manalo?*

Mr. Matibag. *Makatulong lang po. Sapagkat ang paniwala ko po, hindi naman po iisang tao, lalo na ako, ang magpapanalo ng isang kandidato.*

Senator-Judge Padilla. *Opo. So, ngayon po, masasabi po natin na puwede po kayong magtrabaho bilang isang political operator?*

Mr. Matibag. *Ano po bang konteksto noong political operator? Ang ibig ko pong sabihin, ako po ay nasasama sa isang political party noon. So, tumutulong po tayong maipanalò ang isang kandidato ng political party.*

Senator-Judge Padilla. *Opo. Maipanalò lang po.*

Mr. Matibag. *Yes, Sir.*

Senator-Judge Padilla. *Ano po ba ang trabaho ng political operator sa Pilipinas? Puwedeng gumawa, puwede din sumira?*

Mr. Matibag. *Well, ang political operator, to be successful, kailangan po 'yung kaniyang sasamahan ay magtagumpay 'yung kaniya pong laban at adbokasiya.*

Senator-Judge Padilla. *Okay. Iyon lang po. Maraming salamat po, kaibigang attorney.*

The Presiding Officer. *Thank you, Senator-Judge Padilla.*

The Senate President is recognized for his interjections.

QUESTIONS OF SENATE PRESIDENT GATCHALIAN

The Senate President. *Thank you, Mr. Presiding Officer. Itutuloy ko lang po 'yung mga katanungan ng mga kasamahan po natin kanina.*

Mr. Witness, *babalikan ko po 'yung persons of interest. Itong person of interest, ito 'yung nakausap n'yong actual killer?*

Mr. Matibag. *Iyong persons of interest po can be characterized na merong nakausap.*

The Senate President. *Pero 'yung kausap n'yo, ito ba 'yung actual na nakontrata?*

Mr. Matibag. *Well, persons of interest, iyon nga po, ang sinasabi nga po natin, ito 'yung maaaring makapagturo. Hindi pa po natin nakausap ito lahat. Ang sinasabi ko po kanina, doon sa atin pong mga nakilala, meron na pong mga pamilya na gustong makipag-usap sa atin at magbigay ng impormasyon. Katunayan, nakakausap na po.*

The Senate President. *So ito, hindi ito 'yung actual na nakontrata?*

Mr. Matibag. *Iyon po 'yung dumadaan pa po sa proseso ng amin pong pag-iimbestiga.*

The Senate President. *Hindi, gusto ko lang—by process of elimination, 'yung nakausap n'yo is hindi pa actual na nakontrata?*

Mr. Matibag. *Hindi pa po natin masiguro doon po sa natitirang numero kung ang isa doon ay siya talaga ang actual na nakontrata or grupo po.*

The Senate President. *Nasabi n'yo, may iba rin ba kayong nakakausap pa?*

Mr. Matibag. *Tama po.*

The Senate President. *Iyong iba naman ay makakapagturo kung sino 'yung nakontrata?*

Mr. Matibag. *Tama po, Your Honor.*

The Senate President. *Tama. At itong mga taong makakapagturo, ano po 'yung mga ebidensiya na puwede ninyong sabihin na credible itong mga taong 'to?*

Mr. Matibag. *Doon na po pumapasok 'yung mga intelligence report po sa amin, using our tools, the human intel, and the officers' detail—*

The Senate President. *Give me an example. Bigyan lang ninyo kami ng concrete example na ito ay credible, puwedeng paniwalaan na magtuturo. Just give us an example.*

Mr. Matibag. *Iyong ginagamit po namin dito na human intel ay 'yung mga dati na rin po naming informants na nasa ground po, na nakakakuha po ng mga intelligence na ipinapasa po sa amin.*

The Senate President. *So, base ito sa human intelligence.*

Mr. Matibag. *Human intel po, tama.*

The Senate President. *Pero puwede ring mangyari na itong person of interest, wala ring kalalabasan?*

Mr. Matibag. *Possible po iyon. Nangyayari po iyan sa mga kaso po na—*

The Senate President. *So, 'yung nasabi ninyo kahapon, three to six months, puwede rin after six months, zero, walang kalalabasan?*

Mr. Matibag. *That is a possibility, pero gaya nga ng sabi ko, because we were able to narrow down the numbers at meron pong strong indication right now, kasama na nga po 'yung hangarin noong mga pamilya nitong mga taong nakausap na tinitingnan natin, eh dito po namin ibinabase na mukhang lalabas po ang positibong resulta po.*

The Senate President. *So, in other words, 'yung probability, mataas?*

Mr. Matibag. *Mataas po.*

The Senate President. *Gaano kataas? Bigyan ninyo kami ng more or less lang, in your own opinion.*

Mr. Matibag. *Siguro po, from the scale of 1 to 10, eh nandoon po tayo ngayon sa 6 to 7 po.*

The Senate President. *6 to 7 na merong kalalabasan na magtuturong may nakontrata?*

Mr. Matibag. *Tama po.*

The Senate President. *Babalikan ko lang 'yung statement ninyo na nakakausap ninyo parati 'yung—or na-mention ninyo 'yung Vice President Security Group, tama ba?*

Mr. Matibag. *Kasama po iyon sa isinama natin na pag-aaral po, pag-iimbestiga.*

The Senate President. *Correct. Kasama ba sila sa persons of interest, itong Vice President Security Group?*

Mr. Matibag. *Hmm. Meron pong—*

The Senate President. *Kasi nabanggit ninyo kahapon na madali silang tawagin, nandoon lahat. Kasama ba sila dito sa persons of interest ninyo?*

Mr. Matibag. *Well—*

The Senate President. *Kung puwede ninyong sabihin, ha. I know you're investigating. Kung puwede lang sabihin.*

Mr. Matibag. *Actually, meron pong personalidad na kasama roon.*

The Senate President. *Merong kasama doon. But naiintindihan ko na itong VP Security Group is also members of the government?*

Mr. Matibag. *Iyon nga po 'yung sinasabi ko, that there are—actually, doon po sa aming narrow down, there are many uniformed who is in active service.*

The Senate President. *Na puwede ring palitan ng Executive at any given time. Tama?*

Mr. Matibag. *Tama po.*

The Senate President. *So, kung puwede silang palitan, paano nagkakaroon—paano sila nagiging persons of interest na merong potentially manggaling sa kanila itong pagkokontrata?*

Mr. Matibag. *Iyon po 'yung precisely the reason na ayaw po natin na 'yung term na tinatawag na "masunog" iyong atin pong lead na kinukuha. Baka po makaapekto' pag nagkaroon po ng mga sudden po na galawan. So, right now, 'yung tao po nating sinusundan, at para madali rin po sa aming pag-monitor and surveillance, mas maigi po na nakapirmi po.*

The Senate President. *Sige. Maraming salamat, Ginoong Witness; thank you, Mr. Presiding Officer.*

Mr. Matibag. *Salamat po.*

The Presiding Officer. Senator-Judge Pangilinan is recognized for his interjections. Thereafter, Senator-Judge Go. Thereafter, Senator-Judge Hontiveros.

Senator-Judge Pangilinan, you have two minutes. You may proceed when you're ready, Sir.

QUESTIONS OF SENATOR-JUDGE PANGILINAN

Senator-Judge Pangilinan. *Maraming salamat, Mr. Presiding Officer.*

Ginoong Witness, nabanggit ng ilang testigo bago sa iyo, si Attorney Lotoc, not in so many words, above his pay grade 'yung usapin ng interagency coordination. At sabi pa n'ya, maaaring ang director mismo, former director, or current director ang makapagsasabi niyan. Noong sinabi ninyong mayroong security threat na national security threat, nakipag-ugnayan ba ang NBI sa iba pang mga ahensiya ng pamahalaan para pag-usapan ito?

Mr. Matibag. *Meron po. Meron po kaming tuloy-tuloy na ugnayan.*

Senator-Judge Pangilinan. *At sino-sino ang mga ahensiya, o alin dito sa mga ahensiya ng pamahalaan ang nakipag-ugnayan kayo?*

Mr. Matibag. *Actually po, sinasabi nga natin, meron po kasing security cluster kung saan po natatalakay 'yung mga kailangan pong pag-usapan. So, sa ngayon po, through the Office of the Executive Secretary, meron po akong mga pakikipag-usap doon po sa military units din po natin. If you will not mind, I will not mention the exact military unit po.*

Senator-Judge Pangilinan. *So, there have been interagency coordination to assess and to address itong kinokonsidera ninyong national security threat?*

Mr. Matibag. *Totoo po iyan. Yes po.*

Senator-Judge Pangilinan. *Okay. Doon sa usapin ng pag-iimbestiga ninyo naman. Nasabi ninyong may narinig kayong mga banta, napanood ninyo. Meron ba kayong na-monitor na nagbanta naman ang ating Pangulo bilang pag-retaliate doon sa nasabing banta ni Vice President?*

Mr. Matibag. *Ibig sabihin po, banta ng Pangulo sa Bise Presidente?*

Senator-Judge Pangilinan. *Yes. Meron ba kayong na-monitor?*

Mr. Matibag. *Wala po.*

Senator-Judge Pangilinan. *Kung meron man, hypothetically, tama ba iyon?*

Mr. Matibag. *Well, kailangan pong imbestigahan din kung meron pong ganoong banta.*

Senator-Judge Pangilinan. *In other words, would you consider, in a hypothetical situation, revenge as justified? If there is a threat to the President, he decides—he likewise publicly threatens whoever, not necessarily the Vice President, whoever.*

Mr. Matibag. *Palagay ko po hindi tama, sapagkat hindi naman po ito isang justifying o exempting na circumstance pagka nangyari po 'yung pagbabanta. Lalong-lalo na po kung mataas na opisyal, hindi po puwedeng maging batayan ang kaniyang paghihiganti para magbanta po.*

Senator-Judge Pangilinan. So, ang paghihiganti, self-defense ba iyon?

Mr. Matibag. *Hindi po.*

Senator-Judge Pangilinan. *Hindi.* In other words, hindi ligal ang paghihiganti sa usapin ng kung ikaw ay tinakot o may banta laban sa iyo?

Mr. Matibag. *Hindi po.*

Senator-Judge Pangilinan. Or kung ikaw ay—when is it allowed? When is self-defense a valid—how do you call it—assertion to allow for non-liability for a crime? Kailan?

Mr. Matibag. *Nakabalangkas po iyan sa Revised Penal Code, kaya lang, hindi ko po kabisado. Pero kung meron po talagang, 'yung talagang actual na, na ang isa pong malinaw ay nangyayari na at kailangan mong iligtas ang buhay, karangalan, at property po ng ibang tao, at lalong-lalo ng mga kamag-anak mo or kaibigan, ay doon po pumapasok 'yung self-defense na valid. May mga ano po siya—elemento.*

Senator-Judge Pangilinan. So, just to wrap up. So, ang banta ng Pangulo, hypothetically, ay hindi tama?

Mr. Matibag. *Hindi po tama. Iyan po ay magba-violate, kung hindi man po sa batas na umiiral na Kodigo Pinal ay doon po sa Konstitusyon. Bilang isang Pangulo ka eh meron ka pong katungkulan na igalang ang batas, igalang ang Konstitusyon, at maging parehas po sa ibang tao po.*

Senator-Judge Pangilinan. Okay. Maraming salamat.

Thank you, Mr. Presiding Officer.

The Presiding Officer. Thank you, Senator-Judge Pangilinan.

Who is next? Senator-Judge Go is recognized. You may proceed, Sir, when you're ready, and you have two minutes, Sir.

QUESTIONS OF SENATOR-JUDGE GO

Senator-Judge Go. *Salamat po, Mr. Presiding Officer.*

I just want to put it on record, given that the incident with the Sheriff in July 2011 was discussed in detail during the cross-examination of the Defense earlier, I just find it proper that I shed light on the matter without any bias, given that these are matters of fact and based on personal knowledge.

Since nabanggit po at ipinakita po kahapon—huwag munang pumatak 'yung oras, hindi pa naman tanong iyon—since—kasama na, Sir?

Since nabanggit at ipinakita po kahapon ang insidente noong July 2011, involving the Vice President, then Mayor Sara Duterte, and a Sheriff, I would like to examine the relevance and context of this incident in determining the pattern of behavior of the Vice President. May I ask the NBI Director: Would you agree that determining the context of actions of individuals is important to have a fair and impartial investigation?

Mr. Matibag. *Iyon po 'yung kasama doon, 'yung historical behavior to establish a pattern of violence.*

Senator-Judge Go. Okay. Are you aware na may—alam n'yo ba 'yung konteksto at dahilan kung bakit nagawa ni then-Mayor Sara Duterte iyon? And are you aware na may demolition noong panahong iyon, involving 217 families who were facing eviction?

Mr. Matibag. *Tama po. Ang pagkakaalam ko po, si Sheriff Abe ay dala-dala ang isang legal and valid order of demolition, at gusto n'yang ipatupad po 'yung demolition bilang pagganap po sa kaniyang tungkulin po.*

Senator-Judge Go. A simple search online would provide further details, 'no. Nagalit po si then Mayor Sara noon dahil nakiusap siya sa sheriff na kung puwede bang i-postpone ng ilang oras at i-delay muna ang eviction ng 217 na families. At naalala ko noon na mayroon pong polisiya si former Mayor Rodrigo Duterte na ayaw niya pong magpaalis ng mga informal settlers pag walang malipatan po iyong mga illegal settlers. Kawawa naman po itong mga 'to, na minadali silang paalisin.

Is it correct that Davao City was then—sabi ko nga kanina, it was correct that Davao City was then dealing with the aftermath of a flash flood, then Mayor Sara Duterte had come from attending to affected residents before proceeding—alam n'yo ho ba ito?

Mr. Matibag. Well, I was informed po kanina noong sinasabi iyan.

Senator-Judge Go. Alam n'yo bang 31 po iyong namatay noong panahong iyon?

Mr. Matibag. Iyon po, nalaman ko po kanina.

Senator-Judge Go. Actually, nandoon po ako noong nangyari po iyong insidente. At after two days, bumisita rin po si former Vice President Jojo Binay, kasama niya iyong anak niya na si Sen. Nancy Binay. Mismo, witness po ako doon na talagang hiraap nung sitwasyon. June 29 po iyon nangyari ng madaling araw, iyong flash floods, at marami pong namatay—28 to 31. At after a day, July 1, may schedule po iyong sheriff na paalisin iyong mga informal settlers na wala pang malilipatan.

Ang maalala ko lang po na nakiusap si then Mayor Sara na kung puwedeng ipagpaliban muna ng ilang oras o araw iyong pag-demolish po sa mga illegal or informal settlers na walang malilipatan.

Actually, sa totoo lamang po, since we are here for the search for the truth and justice, I believe it is incumbent upon me to put on record my recollection of what happened. Iyon po iyong maalala ko. Sabi ko nga, may polisiya po iyong siyudad noon na kung walang malilipatan iyong mga informal settlers ay huwag munang paalisin. Kawawa po iyong mga kababayan nating mahihirap na wala pong malilipatan.

Iyon po ang konteksto ng nangyari. We are not justifying violence, but we are highlighting that context is important to have a fair assessment of the incident. Magkakaiba naman po iyong nangyari noong 2011 sa mga pangyayaring iniimbestigahan n'yo po dito. In fact, not just this incident, in our search for the truth, importanteng alamin natin ang dahilan at konteksto ng mga pangyayari upang maging patas, objective, at makatarungan ang ating pagsusuri.

Iyon lamang po. Uubos na Iyong oras ko. Last two minutes na po.

The Presiding Officer. Thank you, Senator-Judge Go.

Senator-Judge Go. Thank you, Mr. Presiding Officer. Salamat po.

Tapos na ba iyong oras ko?

The Presiding Officer. Sabi ni Annika, tapos na raw.

Senator-Judge Go. Sa basketball po, pag-tabla sa last two minutes, may extension na five minutes po.

Mr. Matibag. Salamat po.

Senator-Judge Go. Thank you. Second round.

The Presiding Officer. Thank you, Senator-Judge Go.

Senator-Judge Hontiveros is recognized.

You may proceed, ma'am, when you're ready. You have two minutes as well.

QUESTIONS OF SENATOR-JUDGE HONTIVEROS

Senator-Judge Hontiveros. Salamat, Mr. Presiding Officer.

Mr. Witness, nabanggit po kanina ang political speech at pag-express ng dissent sa gobyerno. Bilang abogado at public servant, kailan po sa tingin ninyo lumalampas sa kritisismo at nagiging national security concern?

Mr. Matibag. *Ang isa pong kritisismo ay lumalagpas na sa iyong kalayaang magsalita kung mayroon na po tayong nalalagpasan at naba-violate na batas, at lalong-lalo na po kung ito ay maghahantong sa kaguluhan at makokompromiso po ang ating national security. If our national security will be under attack, malaki po itong problema.*

Senator-Judge Hontiveros. *So, kung may kritisismo, pero mayroon din pong potensiyal na lumikha ng kaguluhan, o gawing insecure ang national security, lumalampas na po sa kritisismo, nagiging concern of national security ayon sa tingin po ninyo?*

Mr. Matibag. *Tama po. Binabantayan na po natin iyan nang masusi at mas malapit na pagbabantay.*

Senator-Judge Hontiveros. All right. Salamat po.

Ibang paksa naman po, Mr. Witness. Sa lahat po ba ng sitwasyon kung saan nag-iba ang testimonya ng isang witness, masasabi po bang wala nang katotohanan iyong pahayag nila?

Mr. Matibag. *Ang testimonya po na paiba-iba ay diyan po pumapasok iyong intervention ng korte na nakikinig, kung anong testimonya ang dapat pakinggan. At titingnan po diyan, ano ba ang circumstances, bakit may ganoong testimonya, bakit nagbago. At eventually, kung ano po iyong talagang nilagdaan at kinilala ay importante po iyon.*

Senator-Judge Hontiveros. *Speaking of iyong circumstances, mayroon po bang mga valid reasons o mayroon po bang mga dahilan kung bakit nag-iiba ang testimonya sa karanasan at obserbasyon n'yo?*

Mr. Matibag. *Marami po. Maaari pong may pagbabanta sa buhay ng tumitestigo, o sa kaniyang pamilya, o sa kaniyang katatayuan. Maaari din po na dahil may konsiderasyon na pinansyal ay puwedeng magbago ang testimonya. At mayroon pa po siguro na tinitingnan din kung masasakripisyo ang kaniyang pagkatao, hindi naman iyong banta sa buhay niya kundi sa pagkakakulong or kung anuman, or mayroon pong taong gusto pong pagbigyan sa kaniyang pagtestigo.*

Senator-Judge Hontiveros. *So bagama't, siyempre naman po, naghihigpit ang korte sa mga usapin ng katotohanan at standards ng katotohanan ay hindi po masasabi sa lahat ng pagkakataon na wala nang katotohanan ang isang testimonya o na hindi na totoo ang isang testimonya o bahagi ng isang testimonya?*

Mr. Matibag. *Tama po iyan, at lalong-lalo na kung may iba pong ebidensiya. Whether documentary or testimonial evidence din, puwede pong ibangga doon sa testimonyang sinabi para ma-attain po at makita kung kailangang tanggapin o paniwalaan ang testimonyang sinasabi po ng isang tao.*

Senator-Judge Hontiveros. *At doon po pumapasok iyong wisdom ng korte—timbangin ang lahat at subukan pa ring gabayan ang buong proseso na buoin iyong buong kuwento at totoong kuwento mula sa kahit pira-piraso.*

Mr. Matibag. *Tama po iyon. Iyong wisdom and, of course, guided po by the law, the letters and the spirit of the law po.*

Senator-Judge Hontiveros. *Of course. Huling tanong na lamang po, Mr. Witness. Sundan ko iyong tanong kanina ni Senate President tungkol sa persons of interest. At ang punto po ninyo, tama po ba na puwedeng persons of interest ang kaniyang mga security, ni Vice President?*

I am wrapping up, Mr. Presiding Officer.

Ilan po sa pagkakaalam n'yo ang security complement ni Vice President?

Mr. Matibag. *Hindi po ako sigurado sa eksaktong numero, but what I've seen from the news, before, it's 750, and it's reduced to 300-plus po.*

Senator-Judge Hontiveros. *Three hundred plus ang security complement ni Vice President. Iyon po ba ay kinonsidera ng NBI sa pag-characterize noong mga utterances ni VP bilang lampas sa kritisismo at papunta na or ganap na concern sa national security?*

Mr. Matibag. *Ibabalik ko po roon sa ginamit namin po na five standards na ginagamit po ng Secret Service ng America in national threat assessment, iyon pong tinatawag na Protective Intelligence Threat Assessment Methodology po. Ibabalik ko po doon, isa po iyan sa tinitingnan. Doon po pumapasok iyan sa capacity o kapasidad ng tao po na nagsalita ng pagbabanta.*

Senator-Judge Hontiveros. Okay. So, *iyong fact na may higit 300 security complement ay iniugnay n'yo doon sa isang standard ng capacity?*

Mr. Matibag. *Tama po.*

Senator-Judge Hontiveros. All right. Salamat po, Mr. Witness; *salamat*, Mr. Presiding Officer.

The Presiding Officer. Thank you, Senator-Judge Hontiveros.

If there are no other senator-judges, the Chair will have a brief—Senator-Judge Pia Cayetano is recognized for her interjection.

You may proceed, ma'am, when you're ready. You have two minutes.

I believe this is a continuation of the lady's interjection yesterday.

Thereafter, Senator-Judge Alan Cayetano.

QUESTIONS OF SENATOR-JUDGE CAYETANO (P)

Senator-Judge Cayetano (P). We are ready, Mr. Presiding Officer, for the witness.

Sir, noong May 13, you're recorded as saying, "Katunayan, nakiusap nga po ako kay John Consulta na puntahan kami dito sa Sequoia Hotel dahil meron po kaming plano mula pa kaninang umaga," and you went on to say nandoon ka "with all the deputy directors, et cetera." Do you confirm?

Mr. Matibag. Well, *nakausap ko po si John Consulta* except that—

Senator-Judge Cayetano (P). No. Just confirm, Sir. Did you say that?

Mr. Matibag. Yes, I talked to—

Senator-Judge Cayetano (P). — *na nandoon kayo sa Sequoia. Iyon lang, statement na iyon.*

Mr. Matibag. *Mahaba po kasi iyong statement ninyo, pasensya na.*

Senator-Judge Cayetano (P). I just need you to confirm. Did you say that you were in *Sequoia*?

Mr. Matibag. Yes, I talked to—

Senator-Judge Cayetano (P). Thank you. So, you are confirming, okay.

Mr. Matibag. Yes *po*.

Senator-Judge Cayetano (P). And then later on, *dinagdag ninyo, "Wala kami sa Senado, we are on stand down because that's the instructions."* Did you also say that?

Mr. Matibag. Yes *po*.

Senator-Judge Cayetano (P). Thank you.

Meanwhile, in another interview, you then said, *"Mayroong request si GM Veloso to help them secure the area kasi napapansin nila na magulo, labas-pasok. Nagpadala kami ng ilan lang na ahente, parang four to six na tao na nag-iikot sa premises ng GSIS, hindi pumasok sa Senado."* I am quoting *Inquirer* dated 13 May 2026. Did you say this?

Mr. Matibag. Yes, *sa GSIS po*.

Senator-Judge Cayetano (P). Okay, thank you.

So, I ask now for the kind indulgence. *May ipapa-flash lang ako*, it's just a photo, dear colleagues, both parties, *paki-flash lang*. So, *sabi ninyo nasa GSIS*. You confirm *na nasa GSIS ang mga ahente mo*?

Mr. Matibag. *Tama po.*

Senator-Judge Cayetano (P). *Pwedeng magpa-update sa technical, what's going on? It's just a photo. Ito, I'm just showing the Senate website, for the record. Senate website, tapos po nandito po sa right corner, can you read it, Sir? It says contact information. Can you read it?*

Mr. Matibag. *Hindi ko po mabasa.*

Senator-Judge Cayetano (P). *Okay, paabot ko sa Page iyong same thing. It is just the Senate website. Page, paki-abot. Thank you. Pakibasa lang po iyong address ng Senado.*

Mr. Matibag. *Contact information, GSIS Building, J.W. Diokno Building, Pasay City, 1300 Metro Manila, 632-855—*

Senator-Judge Cayetano (P). *Okay na po. Iyong phone number, no need. So, paki-ulit, ano hong building?*

Mr. Matibag. *GSIS Building po.*

Senator-Judge Cayetano (P). *Opo, kasi nag-iisa lang naman po ang address namin. Umuupa po kami dito sa GSIS, iisang building lang po iyon. And for the record, kung saan nakita iyong tao mo, likod lang po iyon ng office ni Senator Loren Legarda. Nasa video po iyon. I will not bother everyone with that. Kung gusto ninyo, Presiding Officer, I can, but for now, I won't. Kasama po iyon sa area na inuupahan ng Senado sa GSIS. We are paying rent, for the information of all. So, iyan po ang gusto ko lang ma-establish.*

It seems kasi po na—

You swore an oath to tell the truth, the whole truth, and nothing but the truth. Is that correct?

Mr. Matibag. *Yes po.*

Senator-Judge Cayetano (P). *Thank you very much.*

So, sa kaalaman po ng ating mga nanonood at masigasig na tagasubaybay, mga kababayan natin, Rule 133 on the Weight and Sufficiency of Evidence, sabi sa Section 1, Preponderance of evidence – [xxx] In determining where the preponderance or superior weight of evidence on the issues involved lies, the court may consider all the facts and circumstances of the case, the witnesses' manner of testifying, their intelligence, [xxx] and also their personal credibility."

Furthermore, in Section 11 of Rule 132, "A witness may be impeached by [xxx], evidence that his general reputation for truth, honesty, or integrity is bad [xxx]." So nag-ring na iyong bell, I will be loyal, I'll follow this na lang, pero may record pa sana akong ipapakita, if the Body wants, I will show the video, na sinabi din po ni NBI Director na in-interview, "Wala pong nasaktan, wala pong nambugbog," but we have a video, alam po ng lahat ng mga kasamahan natin na iyong OSAA, iyong amin pong personnel, binugbog. May video po tayo niyan. I leave it to the Body, I leave it to the Presiding Officer if we want to take up the time of this Court to show that. Iyon lang po, maraming salamat.

The Presiding Officer. *Thank you, Senator-Judge Pia Cayetano.*

Senator-Judge Alan Cayetano is recognized for his interjection and interventions. And if there are no other Senator-Judges that will do so, the Presiding Officer shall make his interjections.

Senator Judge Alan Cayetano, you may proceed.

QUESTION OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A). *Before the questions, just two manifestations.*

The Presiding Officer. *The gentleman may proceed with his manifestation.*

Senator-Judge Cayetano (A). *First of all, to the NBI Director. He looked at me when I smiled a while ago. I wasn't laughing at you or anyone. Noong sinabi mo lang 6,7 kasi or 7,6, iyong mga pamangkin ko, basta't sinabing 6,7, nagtatawanan na.*

Mr. Matibag. *Naiintindihan ko po? Nakita ko po.*

Senator-Judge Cayetano (A). *Iyong iba kasi, hindi.*

Mr. Matibag. I understand *po*.

Senator-Judge Cayetano (A). *Baka akala kung ano ang ibig sabihin, and we're on TV. So, we can be on opposite sides, but we can be very professional, 'di ba?*

Mr. Matibag. *Salamat po.*

Senator-Judge Cayetano (A). So, the second manifestation, Mr. President and Honorable Presiding Officer. You know much has been said about technicalities, *humahaba ito, may mga relevant, irrelevant, so I just want the Prosecution and Defense to know because we're going to go on a short break—short lang naman—SONA sa Monday, Contra-SONA, sa Tuesday, magkikita tayong, sa Wednesday.*

Both sides, you're doing a good job, both sides. I mean, the Prosecution, your job is to prosecute, and the Defense, your job is to defend, all of it is on us.

May tinatawag na "Defense Senator-Judge," may tinatawag na "Prosecution Senator-Judge." Wala pa akong impeachment dito na hindi nangyari iyan, 'di ba? Ang importante, hindi lang iyong resulta, but iyong proseso. And I always say democracy is messy. You want a dictatorship, it's less messy, but it's a dictatorship. May problema. You want a democracy, it's not, 'di ba?

Having said that, I have a lot of questions, but I want to show Senator Raffy Tulfo some good faith, because he always shows me good faith when we're in the Lounge. *Hindi ko na itatanong today, since I think in the next few weeks, madalas naman kaming magkikita ni Director Matibag dahil marami siyang iniimbestigahan na kasama ko doon. So, I'll be seeing you, Mr. Director.*

Thank you, Mr. Presiding Officer.

The Presiding Officer. Thank you, Senator-Judge Alan Cayetano.

Senator-Judge Imee Marcos is recognized for her questions and interjections.

You may proceed, Ma'am. You have two minutes.

QUESTIONS OF SENATOR-JUDGE MARCOS

Senator-Judge Marcos. Yes, thank you very much to our Presiding Judge. Hi, *kumusta, Atty. Mel, Congresswoman Anne, at sa lahat ng narito.*

Itatanong ko lang, kasi sinusundan ko rin iyong kwento ninyo, na kahapon, sabi ninyo na 100% certain na si VP Sara contracted someone on the alleged plan to kill the President as well as two others. Tapos, ito naman, corroborative naman ito, noong sinabi ninyo, noong 29 April yata sa House of Representatives, na sinabi rin ninyo, meron na kaming leads at mukha talagang iyon ang findings, kaya may grave threats at inciting. Tama ba na sinabi po ninyo ito?

Mr. Matibag. *Tama po, meron pong report po.*

Senator-Judge Marcos. *At alam din natin na nag-file na iyong NBI, February 2025, ng Inciting to Sedition case against VP noong February last year. Ngayon, nagtatanong lang ako, 14 months later, as late as 29 April, the NBI still has not identified iyong supposed assassin. Does it mean na at the time na nag-file sila ng kaso ng Inciting noong Pebrero ng nakaraang taon, the NBI wasn't even sure if there was an actual assassin? Alam ko, before your time po, Mel, pero tinatanong ko lang, how can the NBI be sure there was really a contract if they can't even identify the said assassin?*

Mr. Matibag. Respectfully *po*, Your Honor, *magkaiba po kasi ang elemento noon pong kaso ng grave threat at saka inciting based on the investigation report at based po sa findings ng NBI noon ay nakumpleto na po iyong elemento ng grave threats at saka ng inciting to sedition. Hindi naman po kailangang mahanap kung sino po iyong kinausap na assassin. That is not an element for the filing of a complaint.*

Senator-Judge Marcos. So, *ang sinasabi po ninyo, tama iyong pagka-file, pero hindi kumpleto iyong mga findings doon sa Affidavit of Investigation dahil iyan din ang sinabi ni NBI*

Agent Atty. Lotoc na nandito siya at pinahiwatig niya na siya ay lead investigator pero wala siyang personal knowledge of whether there was an actual assassin.

So, why is it that 14 months after filing of the cases, the assassin is yet to be named? At ngayon, humihingi pa kayo ng tatlo hanggang anim na buwan para tuklasin kung sino nga iyon.

At ngayon, humihingi pa kayo ng tatlo hanggang anim na buwan para tuklasin kung sino nga 'yon.

Mr. Matibag. *Ganito nga po. Iyon pong grave threat at inciting to sedition, nandoon na nga po sa DOJ iyan. That is the subject of a resolution na dapat gawin ng DOJ. Magkaiba po iyan, ihiwalay po natin. Ito pong ating investigation dito, is an investigation because of the continuing, active, and serious threat to the President, amounting to the effect na iyong national security is already being compromised. So doon po natin tinitingnan.*

Senator-Judge Marcos. *Pero hindi po iyan ang sinabi ninyo kasi ang sinabi ninyo doon sa House of Representatives, sa Justice Committee, ay maliwanag. Sabi ninyo na "Mayroon kaming leads at mukhang ito na talaga ang findings," kaya nga po nag-file ng kaso ng grave threat at inciting to sedition. Sabi ninyo iyan ang dahilan. That was your statement. Because if you stand by these words na may finding na talaga, at iyon ang dahilan kaya nagpila noong February—as February, the date that the NBI filed—the NBI already had findings that VP Sara spoke with an assassin. How come kayo ngayon sinasabi ninyo na wala naman noong panahon na iyon? Ganun din ang sinabi ni Atty. Lotoc. So hindi ko maintindihan ngayon, talaga bang may assassin na na-identify noong Pebrero, o wala?*

Mr. Matibag. *Wala pong na-identify noong February.*

Senator-Judge Marcos. *Bakit ninyo sinabi doon sa House of Representatives na iyong dahilan na nagpila ng kaso kasi meron na kayong assassin?*

Mr. Matibag. *That is totally magkaiba po na issue. Again, babalik po ako—*

Senator-Judge Marcos. *Pareho iyong issue kasi iyon din ang inaalam noong Justice Committee noon. At ang liwa-liwalag na sabi ninyo iyong dahilan na nakapagpila na sila ay dahil natuklasan na iyong assassin.*

Mr. Matibag. *Wala po akong sinabi doon na natuklasan. I also mentioned at that time that there are persons of interest. Again, we have to go back po na iyong inciting to sedition and grave threat—*

Senator-Judge Marcos. *Hawak ko po iyong transcript kasi. Oo.*

Mr. Matibag. *Tama naman po iyong binabasa ninyo—*

Senator-Judge Marcos. *"Kaya nga nag-file ng kaso kasi meron na kaming leads" ang liwanag nung pagkasabi ninyo, eh.*

Mr. Matibag. *We are referring may lead na nga po, ibig sabihin iyon pong grave threat completed na, mayroon nang threat. In fact, tumatawid na po tayo sa mayroong kinausap, and we are already talking about doon sa admission mismo ni Vice President Sara na mayroon siyang kinausap na papatay at pumayag iyong papatay.*

Senator-Judge Marcos. *Parang napakaliwanag noong sinabi ninyo noon, at mas malabo di hamak ngayon. Ngayon, bakit kinailangan pa mag-issue ng AO-11 kung talaga namang continuing investigation? Dahil ba ito sa April 12, iyong sinasabi ninyong RAGE coalition?*

Mr. Matibag. *Kasama po iyan. Paulit-ulit ko pong sinasabi na there are five points na tinitingnan po natin, na ginagamit po ng isang security service.*

Senator-Judge Marcos. *Yes, we're aware of that, the sexual, economic, etc. Alam naman natin 'yon kasi iyan din ang gamit ng US, 'di ba?*

Mr. Matibag. *Tama po. Kaya po mayroong ongoing investigation, sinabi ko, na iyong threat is serious, continuing, and active; na ito po ay tumatawid na rin to the level of national security.*

Senator-Judge Marcos. *Kung talagang may pattern of violence, doon sa RAGE coalition launching, andoon ba si VP Sara?*

Mr. Matibag. *Wala po.*

Senator-Judge Marcos. *Ganun pala. As a matter of fact, she wasn't even there. Siya ba nagsalita? Siya ba nagsabi noon?*

Mr. Matibag. *Si Mayor Baste po.*

Senator-Judge Marcos. Are you implying na may conspiracy kay VP Sara at Mayor Baste to have the President killed?

Mr. Matibag. *Iyan po iyong aming tinitingnan. Kanina po tanong ni Senator Ping Lacson.*

Senator-Judge Marcos. *Tama.*

Mr. Matibag. *Tinitingnan po natin kung mayroong sabwatan po na nangyayari.*

Senator-Judge Marcos. *May katibayan ba tayo dito sa conspiracy? Dahil matindi ang pinag-aralan ninyo bilang abogado, sapat ba ito para ipakita na may conspiracy doon sa dalawa?*

Mr. Matibag. *Iyon din iyong sagot ko kanina kay Senator Ping Lacson, kaya po hindi pa nakasuhan sapagkat tulad po ng mga kaso na pumapasok, at alam po ng mga abogado na ang conspiracy is sometimes harder to prove than the crime itself. That's why we have to make a case build-up para masiguro po natin na ang isasampang kaso ay lulusot.*

Senator-Judge Marcos. *Sa madaling sabi, wala pa pong katibayan ng conspiracy?*

Mr. Matibag. *Iyon po iyong tinitingnan nga nating anggulo kaya tinitingan sa ebidensiya.*

Senator-Judge Marcos. *Iyon nga, pero sa ngayon habang tayo ay naglilitis dito, wala pa.*

Mr. Matibag. *Kung meron na po na i-file na po namin yan. Kailangan po lumusot ito under Memorandum Circular Number 20 of the Department of Justice with reasonable certainty of conviction.*

Senator-Judge Marcos. *Ngayon alam natin 'yan. Ang sabi ninyo, iyong special task force, ano ang gagawin ng special task force kung natumbok na rin iyong assassin noong Pebrero pa, o natumbok na ninyo ngayon na nasa—ilan na na-interview ninyo? Ano ang gagawin sa mga assassin na ito?*

Mr. Matibag. *Then kailangan po natin silang imbestigahan at kausapin kung gaano kalawak para malaman po natin kung huminto na ba ang threat sa Presidente sapagkat aalamin natin kung sino po ang mga kausap.*

Senator-Judge Marcos. *Dahil maraming nagtatanong kung bakit pa kailangan mag-case build-up samantalang ito na tayo sa impeachment trial, ito na tayo na wala pang actual assassination, kaya hindi naman maintindihan kung ano pa ang silbi ng special task force?*

Mr. Matibag. *Alam po ninyo, iyong pong dito sa impeachment, magkaiba po iyong requirement. Hindi naman po natin kailangan pang ipresinta kung sino 'yong kinausap na assassin. Ang importante lang po rito ay iyong admission mismo ng Bise Presidente na humanap siya ng mamamatay para patayin ang Presidente, at iyon ay pumayag. Doon po papasok na iyan. Dahil po, respectfully, doon po sa impeachment court, hindi naman po necessary na may criminal conviction, kaya po inilatag po iyan kung ano-ano iyong basehan po.*

The Presiding Officer. Kindly wind up, Senator-Judge Imee.

Senator-Judge Marcos. *Sa ating Presiding Judge at pati na rin kay Atty. Matibag na ating Direktor, sabi po ninyo na matutumbok ninyo ito sa loob ng tatlo hanggang anim na buwan kung maaari ay sabihin na ninyo sa amin. Puwede naman i-disclose kung tutuusin at sasampahan naman iyan ng mga demanda through regular filing, hindi dito sa impeachment, at 'di naman siya subject of arrest or inquest proceeding, bakit hindi sabihin? Or kung maaari, bumalik na lang kayo in three to six months, puwede bang i-request iyon kapag mayroon na kayong natuklasan at napuntirang assassin?*

Mr. Matibag. *Again, ang sagot ko po diyan, iba po naman iyong national security protection at impeachment. Dito po sa impeachment, iyong sinasabing "betrayal of public trust," ay pumasok na po. Dahil mayroon pong sinumpang tungkulin ang ating Bise Presidente, "To protect and*

defend the Constitution, execute the law, do justice to everyone, and consecrate herself to the service of the nation."

Senator-Judge Marcos. Alam po natin 'yan.

Mr. Matibag. *Iyon pong ginawa niya po, papasok po iyon sa betrayal of public trust, kasi "enforce the law, do justice." Pero ito po, "execute the law," ito, "execute the President" po.*

Senator-Judge Marcos. Alam po natin iyan pero binubuo natin ang mga elemento ng grave threat at inciting to sedition.

QUESTIONS BY THE PRESIDING OFFICER

The Presiding Officer. Director Matibag, ito ba ang unang pagkakataon na may binuong task force para mag-imbestiga sa mga banta laban sa Pangulo?

Mr. Matibag. Sa pagkaalala ko po, opo.

The Presiding Officer. Sa kasaysayan ng NBI?

Mr. Matibag. Based on the records turnover to me, wala po.

The Presiding Officer. Hindi po ba normal, regular, at ordinaryo lamang na magkaroon ng banta ang Pangulo, ikalawang Pangulo, o sinumang mataas na opisyal, o sinumang mayaman dito sa ating bansa?

Mr. Matibag. Tama po.

The Presiding Officer. Kaya may mga bodyguard sila, 'di ba?

Mr. Matibag. Tama po iyan. Araw-araw po ay alam natin na may threat, pero makakaibang level po.

The Presiding Officer. Tama po iyon. At kung may mga threat tulad nito at kung ito ang unang pagkakataong ginawa ito ng NBI, ang humahawak ng mga bantang ito ay ang PSC na o PSG dati. Tama po ba?

Mr. Matibag. Tama po. Kaya po meron po kaming coordination.

The Presiding Officer. Ngayon, tutumbukin ko na po iyong mga punto ko para hindi ako lumampas sa oras. Sinusundan ang lahat.

Sa inyong imbestigasyon, may bayad po ba iyong kinausap ni VP Sara kung 100% certain po kayo na may kinausap siya para patayin diumano ang Pangulo, may bayad po ba iyon o libre?

Mr. Matibag. That is the part of the investigation po that we have to establish po.

The Presiding Officer. So sa ngayon, hindi pa po ninyo sigurado kung pagkakaibigan lang o samahan lang, o may bayad iyong usapang 'yon?

Mr. Matibag. Tama po. But we consider every possibilities po.

The Presiding Officer. Ngayon, would it matter, Dir. Matibag, kung sino iyong sinabihan niya? Kasama po sa lima ninyong pamantayan na binanggit po ninyo ay identity of person involved and capacity.

Mr. Matibag. Tama po.

The Presiding Officer. Halimbawa po, kung ang kinausap ng ikalawang Pangulo ay kaklase niya sa college na nagtatrabaho sa call center, relevant po ba at mahalaga iyon kaugnay ng capacity, hindi ba? At kaugnay ng identity noong taong kinausap?

Mr. Matibag. That will be considered in the investigation po.

The Presiding Officer. So ibig sabihin, hindi po iyon babagsak sa valid threat, hindi po ba?

Mr. Matibag. *Hindi po natin alam, at kailangan pong alamin kung ano po ang mga pag-uusap, kung ano ang mga konsiderasyon.*

The Presiding Officer. *Pero base sa inyong karanasan po, kung retired police, retired military, active police, marahil may punto kayo, hindi po ba?*

Mr. Matibag. *Mas malaki po ang posibilidad.*

The Presiding Officer. *Pero kung walang military background, walang background kaugnay sa paggamit ng anumang uri ng armas, o walang background kaugnay sa anumang karahasang nagawa niya sa kapwa niya, may basehan din po iyon para sabihin ninyong kabaliktaran, hindi po ba?*

Mr. Matibag. *Titingnan po natin. Tama po.*

The Presiding Officer. *At bilang panghuling katanungan, ito pong inyong task force ay binuo para imbestigahan ang mga banta laban sa Pangulo. Wala na po itong kinalaman sa ikalawang Pangulo mismo kaugnay ng mga kasong isinampa na laban sa kanya na grave threats at inciting to sedition?*

Mr. Matibag. *Tama po, Your Honor.*

QUESTIONS OF SENATOR-JUDGE LEGARDA

Senator-Judge Legarda. It's very simple. I studied national security. I'm a graduate of my masters in national security. I was discussing it with former General Lacson, Senator Lacson, because the words "national security" have been used many times in this Hall in the past few days. So, my questions are very simple. Just for the record, he's my friend, my compadre, Director Melvin Matibag, and Congresswoman Ann.

Okay. *So hindi po dahil nagpapalambot ako dahil kumpare ko siya, gusto ko lang ipahayag ang simpleng katanungan dahil madalas ninyong ginagamit, "national security," at alam ito ni Melvin, I'm a national security expert graduate, I studied it. Batay po sa inyong kaalaman, records, o ebidensiyang nakalap, mayroon bang mas malawak na koordinasyon sa isang interagency task force o coordinated action sa pagitan ng inyong bureau, ang NBI, ang Presidential Security Command or Group, perhaps ang Philippine National Police, or even the National Security Council, or ang NSA, at iba pang mga ahensiyang may kaugnayan dahil sa mga alleged na pahayag ng ating Bise Presidente?*

Mr. Matibag. *Mayroon po. Ako po'y nakikipag-usap po sa PSG po may coordination kami. Katunayan, iyon pong aming ibang inaksiyunan ay base po sa intel report po sa amin ng PSC, ng Presidential Security Command. At mayroon din nga po ako, nabanggit ko na kanina, pakikipag-ugnayan po sa military at sa security cluster through the Executive Secretary po.*

Senator-Judge Legarda. So, all of these discussions are there issuances, memoranda, notices, minutes, directives, reports, official documentation, *na nagpapatunay sa naturang coordination ng task force?*

Mr. Matibag. *Iyon pong aking mga report ay akin pong isinusumite through the Office of the Executive Secretary po.*

Senator-Judge Legarda. How long have you had this inter-agency task force, and is there such a name of a task force? *Kailan po tinatag, kailan natapos, was there a terminal report, and would you consider it—you've always said it's a national security concern?*

Mr. Matibag. Well, there is no specific task force, but the coordination, as I said, is through the Executive Secretary. But we are also coordinating with the Presidential Security Command and the military group.

Senator-Judge Legarda. Mr. Presiding Officer, would the reports of the inter-agency task force *na tinatag ng NBI* be given to the body so that we have an idea of the investigations conducted by the NBI? Has it been submitted?

The Presiding Officer. Let the Presiding Officer make a distinction. Again, the court should be a passive body. We should be receiving evidence through the, um—

Senator-Judge Legarda. Through the prosecutor or the defense, yes?

The Presiding Officer. Through the counsel of the parties unless someone would present it, the court should simply await a submission, if at all, through the parties.

Senator-Judge Legarda. So, my question would be, was this submitted as part of your evidence, the terminal report, and the investigations conducted by this inter-agency body? Because it's the first time I'm actually realizing that there was such an inter-agency body and that this was actually discussed in the National Security Council.

Mr. Matibag. Well, *sabi ko nga po* through the executive secretary, we have been making reports, and for reasons that I've mentioned yesterday that I cannot give the reports that are confidential in nature *ay hindi ko po ito maibahagi sa Impeachment Court po na ito.*

Senator-Judge Legarda. So *wala pong pinabigyan maski anong mga kopya* reports, even just a summation of all these investigations?

Mr. Matibag. It was given to the executive secretary *po*.

Senator-Judge Legarda. And this Court has no copy of it.

Mr. Matibag. Well, *wala po*.

Senator-Judge Legarda. Therefore, I would terminate my questions here, and if we don't have a copy of that report, then we leave it at that. Thank you very much.

Mr. Matibag. *Salamat po.*

DISCHARGE OF THE WITNESS BY THE PRESIDING OFFICER

The Presiding Officer formally discharged Director Matibag from further testimony.

ADMINISTRATIVE MATTERS

1. The Presiding Officer reminded the parties about the conference for the marking and/or transfer of markings and comparison of video exhibits, to be held the next day, 10:00 a.m. at the Recto room;
2. The Presiding Officer directed the Clerk of Court to issue subpoenas to Ms. Violeta Constantino and Ms. Nenita Camposano, former LANDBANK officials, to appear at the trial on Wednesday, July 29, at 10:00 a.m., unless otherwise ordered by the Court;
3. The Presiding Officer likewise reminded the parties of Article 18 of the *Rules* of the Impeachment Court, governing public comments and disclosures by prosecutors, counsel, and witnesses. He noted that both Atty. Tolosa, Counsel for the Panel of Prosecutors, and Atty. Poa, Counsel for the Respondent, were also serving as spokespersons for their respective sides. While commending both for their restraint thus far, he cautioned that continuing to perform both roles might make it difficult to distinguish between permissible procedural statements and comments touching on the merits of the case. He suggested that each party consider designating a separate spokesperson who would not be subject to the same limitations imposed on counsel under the Court's rules.
4. The Presiding Officer informed the Senator-Judges that the Panel of Prosecutors had concluded the presentation of evidence for Article IV and the Court was two days ahead of the timetable established in the Pre-Trial Order.

Under the Pre-Trial Order, eleven trial days were allotted for the presentation of Article IV but only six days were actually used due to the withdrawal of several witnesses. He noted that three additional days had been spent on oral arguments concerning the subpoena, interjections and debates among the senator-judges, and the

parties' opening statements, bringing the total proceedings to nine days. He expressed hope that the proceedings would continue at the same pace.

5. Responding to Atty. Vinluan's inquiry about the order of witness presentation for the next hearing, the Presiding Officer stated that former LANDBANK manager Ms. Constantino would be presented first, followed by former branch manager Ms. Camposano. He requested the parties to be prepared for the possibility that both witnesses would testify on the same day, depending on the duration of their direct, cross, and re-cross examinations.

INQUIRY OF SENATOR-JUDGE CAYETANO (P)

To the inquiry of Senator-Judge Cayetano (P) on the possible change in the order of witness presentation, the Presiding Officer stated that the matter would be discussed early the following week based on the parties' agreement; otherwise, the Court would proceed with the scheduled order of presentation.

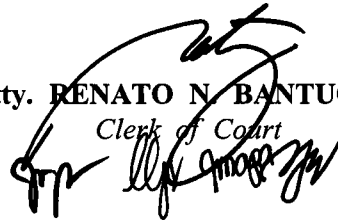
ADJOURNMENT OF THE IMPEACHMENT TRIAL

The Presiding Officer declared the impeachment trial adjourned until ten o'clock in the morning of Wednesday, July 29, 2026.

It was 4:41 p.m.

I hereby certify to the correctness of the foregoing.

Atty. RENATO N. BANTUG JR.
Clerk of Court



Approved on July 29, 2026